

FR-831/24

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

WP No. / 2024

Serial No.



M. S. PARTHASARATHI
M. P. SRIKANTH
P. N. SHOBHA

ADVOCATES

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..... District

Between

Smt. Gangalakshamma

And

The State of Karnataka

and Others.

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Bangalore

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**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA ... PETITIONER

AND:

STATE OF KARNATAKA & OTHERS ... RESPONDENTS

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BANGALORE
DATED: 02.01.2024

ADVOCATE FOR PETITIONER
(M.P.SRIKANTH)

**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA ... PETITIONER

AND:

STATE OF KARNATAKA & OTHERS ... RESPONDENTS

SYNOPSIS

15.12.1997	Petitioner came to be appointed as the Gallery Attender on 15.12.1997. She passed SSLC Examination in the year 2008. As on today, the Petitioner has put in a service of 17 years in the cadre of Gallery Attender. On 09.06.2008, the Petitioner submitted a letter to the 2 nd Respondent enclosing a copy of the SSLC Marks Card, requesting the 2 nd Respondent to accommodate her in a suitable post.
20.08.2009	Thereafter, on 20.08.2009, the Petitioner submitted a representation to the 3 rd

	Respondent stating that she has been serving since 12 years as Gallery Attender; that she has passed SSLC examination in 2008. Therefore, the Petitioner requested the 3 rd Respondent to give her promotion to enable her to serve the Parishath.
25.08.2009	In response to the representation dated 20.08.2009 submitted by the Petitioner, the 3 rd Respondent issued an endorsement dated 25.08.2009 and rejected the request on the ground that there are no posting vacant in the Parishath to her education level.
09.11.2009	Thereafter, vide Notification dated 09.11.2009 the 1 st Respondent published the Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment & Conditions of Service of Employees) Regulations, 2009, wherein in respect of posts of the Parishath, the method of appointment and qualification

	came to be prescribed. It is submitted that, so far as the posts of Second Division Assistant, the method of recruitment is 50% by promotion from any of the cadre in Group-D service on the basis of seniority and 50% by direct recruitment. Further, for promotion the minimum qualification prescribed was PUC with service years of experience in the cadre of anyone or more of the cadres of Group-D service.
14.05.2010	The Chief Administrative Officer of the Parishath, issued an Official Memorandum dated 14.05.2010 publishing the Provisional Seniority List of various cadres of the Chitrakala Parishath calling for objections, if any, to be submitted on or before 28.05.2010.
01.01.2011	The total number of permanent posts of Second Division Assistant in the Chitrakala

	Parishath was 5 in Nos., in the pay scale of Rs.5800-10500. When such was the situation, the 3rd Respondent published the Seniority List of the cadre of Second Division Assistants as on 01.01.2011, wherein 5 persons names came to be mentioned there as being promoted to the cadre of Second Division Assistants. All the five persons mentioned in the said list, are shown as promotees from different cadres like Studio Assistants, Office Assistants, Gallery Assistants and Second Division Assistant.
10.04.2015	Very recently also the Petitioner submitted a representation dated 10.04.2015 to the Respondent alleging that her junior has been promoted and requested for considering her case for promotion.
Nil	This Hon'ble Court has passed an order dated 22.05.2023 in W.P. No.39600/2015

	(S-PRO) and disposed of the same and directed the Respondent No.2 and 3 to consider the Representation dated 10th April, 2015 (Annexure-L) of the Petitioner and as this Hon'ble Court felt that the earlier Representation was of the year 2015, directed the Petitioner to make one more Representation to the Respondents No.2 and 3 within two weeks from the date of the order and also directed, if such Representation is made by the Petitioner, the Respondents No.2 and 3 shall consider the same in accordance with law, within an outer limit of eight weeks from the date of receipt of the Representation to be made by the Petitioner.
11.08.2015	In response to the same, the 3rd Respondent issued an endorsement dated 11.08.2015 stating that the Chitrakala Parishath will not

	come under the purview of RTI.
27.07.2023	By virtue of the Order dated 22.05.2023 passed in W.P. No.39600/2015 (S-PRO), the Petitioner has presented two Representations dated 26.05.2023 and 27.07.2023 to comply the directions of this Hon'ble Court and to consider her case in the light of above circumstances and grant her promotion retrospectively from the date her junior has been promoted and also requested to extend all the benefits including payment of arrears salary etc., from such date. Also it was requested to sanction the increments and arrears of the same from the date the same being withheld i.e., from the year 2018.
Nil	Even after presenting above two representations dated 26.05.2023 and 27.07.2023 to the Respondent, the

	Petitioner approached the Respondent and requested for compliance of the order of this Hon'ble Court. Inspite of the same, the Respondent have not complied the order of this Hon'ble Court and have shown utter disobedience to the order dated 22.05.2023 passed on W.P. No.39600/2015 (S-PRO) of this Hon'ble Court. In these circumstances, the present contempt application is filed.
04.11.2023	During the pendency of the above contempt petition, the Respondent No.2 has issued an Endorsement No.Chi.Ka.Pa.27/2023-24 dtd. 04.11.2023, wherein it is stated that the request of the Petitioner cannot be considered as the Petitioner has not acquired the requisite qualification as per the Cadre and Recruitment Rules of the 2nd Respondent and the said decision was taken in the Executive Committee Meeting held on

	25.09.2023 in pursuance of the opinion given by the legal expert of the 2 nd Respondent.
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BRIEF FACTS

The Petitioner in the present petition is seeking for retrospective promotion from the date she was entitled for the same. It is a matter of fact that her junior was promoted much earlier to her and in case of the Petitioner, the promotion is sought to be denied, which is absolutely unjust. It is a matter of fact that before even the Cadre and Recruitment Rules were adopted her junior was promoted and the Petitioner's claim is denied. Even for consideration of her case from the date when her junior is promoted is also denied arbitrarily. Hence, being aggrieved, the Petitioner is before this Hon'ble Court.

BANGALORE
DATED: 02.01.2024

ADVOCATE FOR PETITIONER
(M.P.SRIKANTH)

**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA,

W/o. D. Rangaswamy,
Aged about 58 years,
Working as Gallery Attender,
Karnataka Chitrakala Parishath,
Kumar Krupa Road,
Bengaluru,
R/at No-490,
Chandralaya, 5th Cross,
Near Patalamma Temple,
Bharath Co-Operative Society Ltd Uttarahalli,
Bengaluru South,
Bengaluru-560061,

.. PETITIONER

AND:

1. THE STATE OF KARNATAKA,

Represented by its Secretary,
Co-Operation Department,
M.S. Building,
Bengaluru - 560 001.

2. THE CHAIRMAN,

Karnataka Chitrakala Parishath,
Art Complex, Kumarakrupa Road,
Bengaluru.

3. THE PRINCIPAL SECRETARY,

Karnataka Chitrakala Parishath,
Art Complex, Kumarakrupa Road,
Bengaluru - 560 001.

..RESPONDENTS

**MEMORANDUM OF WRIT PETITION UNDER
ARTICLES 226 & 227 OF THE CONSTITUTION OF
INDIA**

The Petitioner above named begs to submit as follows:-

1. The addresses of the Petitioner for the purpose of service of summons, notice etc., from this Hon'ble Court is as stated in the cause title and that of her Advocates Sri. M.S.Parthasarathi, Sri.M.P.Srikanth and Smt.P.N.Shobha, Advocates, #1/14-1, 1st Floor, 6th Main Road, Near Karumariyamma Temple, Above Skanda Enterprises, Mahalakshmi Layout, Bangalore-560 086.
2. The address of the Respondent for the purpose of service of notice etc., is as mentioned in the cause title above.
3. The Petitioner in the instant case is an employee of the Karnataka Chitrakala Parishath. She is working in the cadre of Attender in the office mentioned in the cause title. In the present case, the Petitioner is aggrieved by

the action of the Respondent in depriving her promotion opportunity.

4. It is submitted that the Petitioner came to be appointed as the Gallery Attender on 15.12.1997. She passed SSLC Examination in the year 2008. As on today, the Petitioner has put in a service of 17 years in the cadre of Gallery Attender. On 09.06.2008, the Petitioner submitted a letter to the 2nd Respondent enclosing a copy of the SSLC Marks Card, requesting the 2nd Respondent to accommodate her in a suitable post. Copy of the Letter dated 09.06.2008 along with SSLC Pass Certificate are herewith produced and marked as **ANNEXURES-A and B respectively.**

5. It is submitted that, thereafter, on 20.08.2009, the Petitioner submitted a representation to the 3rd Respondent stating that she has been serving since 12 years as Gallery Attender; that she has passed SSLC examination in 2008. Therefore, the Petitioner requested the 3rd Respondent to give her promotion to enable her

to serve the Parishath. Copy of the Representation dated 20.08.2009 is herewith produced and marked as **ANNEXURE-C.**

6. It is submitted that in response to the representation dated 20.08.2009 submitted by the Petitioner, the 3rd Respondent issued an endorsement dated 25.08.2009 and rejected the request on the ground that there are no posting vacant in the Parishath to her education level. Copy of the endorsement dated 25.08.2009 is herewith produced and marked as **ANNEXURE-D.** Thereafter, on the same subject, the 3rd Respondent issued one more endorsement dated 06.10.2009 rejecting the request of the Petitioner for promotion. Copy of the endorsement dated 06.10.2009 is herewith produced and marked as **ANNEXURE-E.**

7. It is submitted that, when being the situation, the Chief Administrative Officer of the Parishath, issued an Official Memorandum dated 14.05.2010 publishing the Provisional Seniority List of various cadres of the

Chitrakala Parishath calling for objections, if any, to be submitted on or before 28.05.2010. Copy of the OM dated 14.05.2010 along with Seniority List are herewith produced and marked as **ANNEXURE-F.**

8. It is submitted that, thereafter, vide Notification dated 09.11.2009 the 1st Respondent published the Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment & Conditions of Service of Employees) Regulations, 2009, wherein in respect of posts of the Parishath, the method of appointment and qualification came to be prescribed. It is submitted that, so far as the posts of Second Division Assistant, the method of recruitment is 50% by promotion from any of the cadre in Group-D service on the basis of seniority and 50% by direct recruitment. Further, for promotion the minimum qualification prescribed was PUC with service years of experience in the cadre of anyone or more of the cadres of Group-D service. Copy of the Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment &

Conditions of Service of Employees) Regulations, 2009 is herewith produced and marked as **ANNEXURE-G**.

9. It is submitted that, the total number of permanent posts of Second Division Assistant in the Chitrakala Parishath was 5 in Nos., in the pay scale of Rs.5800-10500. When such was the situation, the 3rd Respondent published the Seniority List of the cadre of Second Division Assistants as on 01.01.2011, wherein 5 persons names came to be mentioned there as being promoted to the cadre of Second Division Assistants. All the five persons mentioned in the said list, are shown as promotees from different cadres like Studio Assistants, Office Assistants, Gallery Assistants and Second Division Assistant. Copy of the Seniority List of Second Division Assistants as on 01.01.2011 is herewith produced and marked as **ANNEXURE-H**. In the said list, one Sri. Lokesh H.P. and another Sumithra B., have been shown to have been promoted from 01.01.2008 and 01.01.2009 respectively.

10. It is submitted that, the Petitioner who has been deprived of her promotion, in order to know the position as to how and under provision her junior has been promoted, submitted an application under RTI seeking certain information. Copy of the Application submitted under RTI is herewith produced and marked as **ANNEXURE-J**. In response to the same, the 3rd Respondent issued an endorsement dated 11.08.2015 stating that the Chitrakala Parishath will not come under the purview of RTI. Copy of the endorsement dated 11.08.2015 is herewith produced and marked as **ANNEXURE-K**. The endorsement issued by the 3rd Respondent is only with an intention to harass the Petitioner depriving her from getting promotion and also to see that she will / cannot approach this Hon'ble Tribunal.

11. It is submitted that, very recently also the Petitioner submitted a representation dated 10.04.2015 to the Respondent alleging that her junior has been

promoted and requested for considering her case for promotion. Copy of the Representation dated 10.04.2015 is herewith produced and marked as **ANNEXURE-L**.

12. In the circumstances, being aggrieved by the action on the part of the Respondent in depriving the Petitioner her promotion and promoting juniors of the Petitioner, the Petitioner without any other alternative and efficacious remedy available under law invokes the extraordinary jurisdiction of this Hon'ble Court under Article 226 and 227 of the Constitution of India and preferred the Writ Petition No.39600/2015.

13. After hearing from the parties of both sides, this Hon'ble Court has passed an order dated 22.05.2023 in W.P. No.39600/2015 (S-PRO) and disposed of the same and directed the Respondents No.2 and 3 to consider the Representation dated 10th April, 2015 (Annexure-L) of the Petitioner and as this Hon'ble Court felt that the earlier Representation was of the year 2015, directed the Petitioner to make one more Representation to the

Respondents No.2 and 3 within two weeks from the date of the order and also directed, if such Representation is made by the Petitioner, the Respondents No.2 and 3 shall consider the same in accordance with law, within an outer limit of eight weeks from the date of receipt of the Representation to be made by the Petitioner. Copy of the Order dated 22.05.2023 passed in W.P. No.39600/2015 (S-PRO) is produced herewith and marked as **ANNEXURE-M.**

14. By virtue of the Order dated 22.05.2023 passed in W.P. No.39600/2015 (S-PRO), the Petitioner has presented two Representations dated 26.05.2023 and 27.07.2023 to comply the directions of this Hon'ble Court and to consider her case in the light of above circumstances and grant her promotion retrospectively from the date her junior has been promoted and also requested to extend all the benefits including payment of arrears salary etc., from such date. Also it was requested to sanction the increments and arrears of the same from

the date the same being withheld i.e., from the year 2018. Copies of the Representations dated 26.05.2023 and 27.07.2023 are produced herewith and marked as **ANNEXURES-N and P.**

15. It is submitted that even after presenting above two representations dated 26.05.2023 and 27.07.2023 to the Respondent, the Petitioner approached the Respondent and requested for compliance of the order of this Hon'ble Court. In spite of the same, the Respondents did not comply the order of this Hon'ble Court and shown utter disobedience to the order dated 22.05.2023 passed on W.P. No.39600/2015 (S-PRO) of this Hon'ble Court. In these circumstances, the Petitioner filed Contempt Petition in CCC No.865/2023 before this Hon'ble Court and dismissed as withdrawn and liberty to challenge the endorsement.

16. The Petitioner joined the services of the Respondent Chitrakala Parishath on 15.12.1997 as Gallery Attender. During 2008 she completed her SSLC and immediately

thereafter on 09.06.2008, a representation was submitted by her and requested for accommodating in a suitable post. However, on 20.08.2009 an endorsement was issued to the effect that there are no posts in the Chitrakala Parishath, where she can be accommodated and another endorsement was issued on 06.10.2009, the services of the employees of the Chitrakala Parishath is regulated by the provisions of Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of Services on Employees) Regulation, 2009 and the Regulation provide for promotion to the cadre of Second Division Assistant is P.U.C. or equivalent or Service of 7 years in one or more of the cadre in Group-D.

17. It is necessary to point out that the Petitioner as per her Representation dated 27.07.2023 clearly mentioned that one of her juniors Smt. Sumithra B., who was appointed on 27.09.1999 as Gallery Attender was promoted with effect from 01.01.2009 and one

Muni Eramma, who was appointed in 2000 was promoted to the cadre of Second Division Assistant in the year 2013.

18. Relying upon certain decisions of the Hon'ble Supreme Court, the Petitioner has demonstrated that before the Rules came into force her juniors were promoted which is not justified.

19. It is submitted that the endorsement which has been issued by the Respondent does not refer to any of the contentions raised by the Petitioner and fails to recognize the fact that the juniors of the Petitioner were promoted even before the Cadre and Recruitment Rules came into force, which means to say that there is discriminatory treatment in so far as the Petitioner is concerned.

20. During the pendency of the above contempt petition, the Respondent No.3 has issued an Endorsement No.Chi.Ka.Pa.27/2023-24 dated 04.11.2023, wherein it is stated that the request of the

Petitioner cannot be considered as the Petitioner has not acquired the requisite qualification as per the Cadre and Recruitment Rules of the 3rd Respondent and the said decision was taken in the Executive Committee Meeting held on 25.09.2023 in pursuance of the opinion given by the legal expert of the 3rd Respondent. Copy of the Endorsement No.Chi.Ka.Pa.27/2023-24 dated 04.11.2023 as issued by the 3rd Respondent is produced herewith and marked as **ANNEXURE-Q**.

21. In these circumstances, the present petition is filed on the following amongst other grounds.

22. The Petitioner has not filed any writ petition nor instituted any suit or proceedings either before this Hon'ble Court or before any other court based on the same cause of action.

23. The Petitioner has no other alternative and efficacious remedy except to approach this Hon'ble Court on the following amongst other grounds to be urged at the time of hearing the writ petition on merits.

GROUND

24. It is submitted that the Petitioner has been discriminated against since beginning and is troubled, harassed in so far as her service conditions are concerned.

25. It is submitted that in spite of specific directions of this Hon'ble Court permitting the Petitioner to make a representation and also directed the Chitrakala Parishath to consider the same, it is clear that mechanically the endorsement is issued and the tenor of the endorsement issued on the Petitioner is indicative of the fact that the same has been issued without any application of mind or in the alternative only to harass the Petitioner.

26. It is submitted that viewed from any angle, the impugned endorsement dated 04.11.2023 is wholly unsustainable and is liable to be quashed.

27. Further it is a matter of fact that the Petitioner has only a few months of service left and the attitude of the Respondents is to deny the promotion to the Petitioner at any cost.

28. It is submitted that the impugned endorsement, which is issued on the Petitioner on 04.11.2023 is wholly arbitrary and is liable to be rejected.

29. Further the Petitioner is entitled to be promoted from the date her junior is promoted that too even prior to Cadre and Recruitment Rules coming into force. In these circumstances, necessary directions are to be issued for promoting the Petitioner from the said date is also required to be passed.

PRAYER

WHEREFORE, it is respectfully prayed that this Hon'ble Court may be pleased to:-

- a) Quash the Endorsement No.Chi.Ka.Pa. 27/2023-24 dated 04.11.2023 as issued by the 3rd Respondent vide **Annexure-Q.**
- b) Direct the Respondents to promote the Petitioner retrospectively from the date her junior was promoted to the cadre of Second Division Assistant with all such

consequential and financial arrears and benefits.

- c) Pay interest @ 18% P.A. on delayed payment of such arrears of service and financial benefits.
- d) Pass any order of consequential relief or any other appropriate order or direction as this Hon'ble Court deems fit in the facts and circumstances of the case in the ends of justice and equity.

BANGALORE
DATED: 02.01.2024

ADVOCATE FOR PETITIONER
(M.P.SRIKANTH)

Address for service.
M.S.PARTHASARATHI,
M.P.SRIKANTH AND
P.N.SHOBHA,
Advocates,
PSS Legal, No.15,
6th 'E' Main Road,
2nd Stage, 2nd Phase,
Mahalakshmi Layout,
Bangalore-560 086.

**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA ... PETITIONER

AND:

STATE OF KARNATAKA & OTHERS ... RESPONDENTS

VERIFYING AFFIDAVIT

I, **SMT. GANGALAKSHMAMMA**, W/o. D. Rangaswamy, Aged about 58 years, Gallery Attender, Karnataka Chitrakala Parishath, Kumar Krupa Road, Bengaluru, R/at No-490, Chandralaya, 5th Cross, Near Patalamma Temple, Bharath Co-Oprative Society Ltd Uttarahalli, Bengaluru South, Bengaluru-560061, do hereby solemnly affirm and state on oath as follows:

1. I submit that I am the Petitioner in the above Complaint and I am well conversant with the facts of the case. Hence I am swearing to this affidavit.

2. I submit that the averments made in Paras 1 to 29 of the Writ Petition are true and correct to the best of my knowledge, information and belief.

3. I state that **Annexures-'A' to 'Q'**, are xerox copies of the originals.

VERIFICATION

I state that the averments made in the writ petition are true and correct to the best of my knowledge, information and belief.

IDENTIFIED BY ME

**ADVOCATE
BANGALORE**

DATED: 02.01.2024

NO. OF CORRECTIONS:-

**DEPONENT
"Sworn to before me"**

27

ANNEXURE- A

ದಿನಾಂಕ 9.6.2008

ಇಂದ

ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್,
ಕುಮಾರಕೃಪಾ ರಸ್ತೆ,
ಬೆಂಗಳೂರು

ರವರಿಗೆ

ಅಧ್ಯಕ್ಷರು,
ಚಿತ್ರಕಲಾಪರಿಷತ್,
ಕುಮಾರಕೃಪಾ ರಸ್ತೆ,
ಬೆಂಗಳೂರು.

ಮಾನ್ಯರೇ,

ವಿಷಯ:- ಎಸ್ ಎಸ್ ಎಲ್ ಸಿ ಉತ್ತೀರ್ಣವಾಗಿರುವುದು - ನನಗೆ
ಸೂಕ್ತ ಹುದ್ದೆ ನೀಡುವ ಬಗ್ಗೆ.

* * *

ಈ ಕೆಳ ಸಹಿ ಮಾಡಿರುವ ನಾನು ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನಲ್ಲಿ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್
ಅಗಿ ಕರ್ತವ್ಯ ನಿರ್ವಹಿಸುತ್ತಿದ್ದು ಈಗ ಎಸ್ ಎಸ್ ಎಲ್ ಸಿ ಪರೀಕ್ಷೆಯನ್ನು 2008ರಲ್ಲಿ
ತೇರ್ಗಡೆಯಾಗಿರುತ್ತೇನೆ (ಅಂಕ ಪಟ್ಟಿಯನ್ನು ಲಗತ್ತಿಸಿದೆ).

ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ದಯವಿಟ್ಟು ನನಗೆ ಸೂಕ್ತ ಹುದ್ದೆಯನ್ನು ನೀಡಬೇಕಾಗಿ
ತಮ್ಮಲ್ಲಿ ವಿನಂತಿ ಮಾಡುತ್ತೇನೆ.

ಗೌರವಗಳೊಂದಿಗೆ,

ತಮ್ಮ ವಿಶ್ವಾಸಿ,

ಗಂಗಲಕ್ಷ್ಮಮ್ಮ

(ಗಂಗಲಕ್ಷ್ಮಮ್ಮ)

EXECUTIVE OFFICER

Karnataka Chitrakala Parishath
"Art Complex" Munira Krupa Road,
Bangalore - 560 001.

G.S. 15/6

9/6



ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

211705

3197663661

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
Karnataka Secondary Education Examination Board
ಪ್ರಮಾಣ ಪತ್ರ
Certificate

ಈ ಕೆಳಗೆ ನಮೂದಿಸಿದ ಅಭ್ಯರ್ಥಿಯು ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ. ಪರೀಕ್ಷೆಯಲ್ಲಿ ಕೆಳಗಿನ ವಿವರಗಳೊಂದಿಗೆ
ತೇರ್ಗಡೆಯಾಗಿದ್ದಾನೆ/ದ್ದಾಳೆ ಎಂದು ಪ್ರಮಾಣೀಕರಿಸಲಾಗಿದೆ. N.S.P REPEATER
This is to certify that the candidate mentioned below has PASSED S.S.L.C. Examination with the following details.

ನೋಂದಣ ಸಂಖ್ಯೆ Register No. : 20070781919	ತಿಂಗಳು/ವರ್ಷ Month/Year : MARCH-2008	ಶಿಕ್ಷಣ ಮಾಧ್ಯಮ Medium of Instruction KANNADA
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ಹೆಸರು Name GANGALAKSHMAMMA

ತಾಯಿಯ ಹೆಸರು Mother's Name LINGAMMA

ತಂದೆಯ ಹೆಸರು Father's Name MAYANNA

ಜನ್ಮ ದಿನಾಂಕ
Date of Birth 24-12-1964 TWENTY-FOURTH DECEMBER NINETEEN SIXTY-FOUR

ವಿಷಯಗಳು SUBJECTS	ಅಂಕಗಳು MARKS		ಪಡೆದ ಅಂಕಗಳು MARKS OBTAINED	ಪಡೆದ ದರ್ಜೆ(ಗಳು) CLASS OBTAINED
	ಗರಿಷ್ಠ MAX.	ಕನಿಷ್ಠ MIN.		
ಪ್ರಥಮ ಭಾಷೆ/ FIRST LANGUAGE : KANNADA	125	44	044*	೦ ನಿಖರವಾದ ೫.೫೫ ಮತ್ತು ಅದಕ್ಕಿಂತ ಮೇಲ್ಪಟ್ಟು ೦ ಪ್ರಥಮ ದರ್ಜೆ ೫.೫೦ ಮತ್ತು ಅದಕ್ಕಿಂತ ಮೇಲ್ಪಟ್ಟು, ಮತ್ತು ೫.೫೫ ರ ಒಳಗೆ ೦ ದ್ವಿತೀಯ ದರ್ಜೆ ೫.೫೦ ಮತ್ತು ಮೇಲ್ಪಟ್ಟು, ಮತ್ತು ೫.೫೦ ರ ಒಳಗೆ ೦ ಮೂರನೇ ದರ್ಜೆ ೫.೫೦ ಮತ್ತು ಮೇಲ್ಪಟ್ಟು, ಮತ್ತು ೫.೫೦ ರ ಒಳಗೆ ಪರೀಕ್ಷೆಯಲ್ಲಿ ಉತ್ತರಿಸಿದ. ಈ ವಿಷಯದಲ್ಲಿ ಕೆಳಗೆ ೫.೫೦ ಅಂಕಗಳು ಮತ್ತು ಮೇಲ್ಪಟ್ಟು ೫.೫೫ ಅಂಕಗಳು. * DISTINCTION : 85% AND ABOVE * FIRST CLASS : 80% AND ABOVE BUT BELOW 85% * SECOND CLASS : 50% AND ABOVE BUT BELOW 80% * CLASS IS DECLARED FOR THOSE WHO PASS IN FIRST ATTEMPT ONLY PASS IN EXAMINATION : 80% MIN. IN EACH SUBJECT AND 35% IN AGGREGATE
ದ್ವಿತೀಯ ಭಾಷೆ/ SECOND LANGUAGE : ENGLISH	100	35	035*	
ತೃತೀಯ ಭಾಷೆ/ THIRD LANGUAGE : HINDI	100	35	035*	
ಗಣಿತ/ MATHEMATICS	100	35	030	
ವಿಜ್ಞಾನ/ SCIENCE	100	35	042*	
ಸಮಾಜ ವಿಜ್ಞಾನ/ SOCIAL SCIENCE	100	35	041*	
ಒಟ್ಟು ಅಂಕಗಳು/ TOTAL MARKS	625	219	227	PASS (36.32%) AS319

ಪಡೆದ ಒಟ್ಟು ಅಂಕಗಳು (ಅಕ್ಷರಗಳಲ್ಲಿ) TWO HUNDRED TWENTY-SEVEN ONLY
TOTAL MARKS OBTAINED (In words) :

ಶಾಲೆಯ ಹೆಸರು ಮತ್ತು ವಿಳಾಸ
NAME OF THE SCHOOL & ADDRESS :
PRASANNA HIGH SCHOOL
PRASHANTHANAGAR
BANGALORE



Abdul Mu
ಕಾರ್ಯದರ್ಶಿಗಳು

ಕರ್ನಾಟಕ ಪ್ರೌಢ ಶಿಕ್ಷಣ ಪರೀಕ್ಷಾ ಮಂಡಳಿ
KARNATAKA SECONDARY EDUCATION EXAMINATION BOARD
ಬೆಂಗಳೂರು BANGALORE

ದಿನಾಂಕ
DATE : 5-MAY-2008

ದಿನಾಂಕ: 20/8/09

ಇಂದ:

ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್,
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಕುಮಾರಕೃಪ ರಸ್ತೆ,
ಬೆಂಗಳೂರು

ಇವರಿಗೆ:

ಆಡಳಿತಾಧಿಕಾರಿಗಳು
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಕುಮಾರಕೃಪ ರಸ್ತೆ
ಬೆಂಗಳೂರು

ಮಾನ್ಯರೇ,

ನಾನು ಸುಮಾರು ಹನ್ನೆರಡು ವರ್ಷಗಳಿಂದ ತಮ್ಮ ಸಂಸ್ಥೆಯಲ್ಲಿ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಆಗಿ ಸೇವೆಯನ್ನು ಸಲ್ಲಿಸುತ್ತಿದ್ದು, ನನಗೆ ವಹಿಸಿರುವ ಕರ್ತವ್ಯವನ್ನು ನಿಷ್ಠೆಯಿಂದ ಮಾಡಿಕೊಂಡು ಬಂದಿರುತ್ತೇನೆ. ಇತ್ತೀಚೆಗೆ ನಾನು 2008ನೇ ಸಾಲಿನಲ್ಲಿ ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ. ಪರೀಕ್ಷೆಯಲ್ಲಿ ಉತ್ತೀರ್ಣರಾಗಿರುತ್ತೇನೆ. (ಅಂಕಪಟ್ಟಿಯ ಪ್ರತಿಯನ್ನು ಲಗತ್ತಿಸಿದೆ).

ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ದಯವಿಟ್ಟು ನನಗೆ ಬಡ್ತಿ ನೀಡಿ ಇನ್ನೂ ಹೆಚ್ಚಿನ ಸೇವೆ ಸಲ್ಲಿಸಲು ಅವಕಾಶ ಮಾಡಿಕೊಡಬೇಕಾಗಿ ತಮ್ಮಲ್ಲಿ ಕಳಕಳಿಯ ಮನವಿ ಮಾಡಿಕೊಳ್ಳುತ್ತೇನೆ.

ವಂದನೆಗಳೊಡನೆ,

ತಮ್ಮ ವಿಶ್ವಾಸಿ,

ಗಂಗಲಕ್ಷ್ಮಮ್ಮ

(ಗಂಗಲಕ್ಷ್ಮಮ್ಮ)

RECEIVED	NO. CLCPTFR/178
2009 / dt: 20/8/09	

ನಕಲು:



Karnataka Chitrakala Parishath
"Art Complex" Kumbara Krupa Road,
Bangalore - 560 001.

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Annexure - D

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು

ಆರ್ಟ್ ಕಾಂಪ್ಲೆಕ್ಸ್, ಕುಮಾರ ಕೃಪಾ ರಸ್ತೆ, ಬೆಂಗಳೂರು - 01.

ಕ್ರಮಾಂಕ : ಚಕಪ : 31 : 2009

ದಿನಾಂಕ : 25.08.2009

: ಹಿಂಬರಹ :

ಉಲ್ಲೇಖ: ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ, ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್, ಇವರು ಬಡ್ತಿ ಕೋರಿ
ದಿನಾಂಕ : 20.08.2009 ರಂದು ನೀಡಿರುವ ಅರ್ಜಿ.

- - -

ಉಲ್ಲೇಖದಲ್ಲಿ ಕಾಣಿಸಿದ ಅರ್ಜಿಯಲ್ಲಿ 2008ನೇ ಸಾಲಿನಲ್ಲಿ ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ. ಪರೀಕ್ಷೆಯಲ್ಲಿ
ಉತ್ತೀರ್ಣರಾಗಿರುವುದರಿಂದ ಬಡ್ತಿ ನೀಡಬೇಕೆಂದು ನೀವು ನೀಡಿರುವ ಕೋರಿಕೆಯನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿದೆ.
ನಿಮ್ಮ ವಿದ್ಯಾರ್ಹತೆಗೆ ತಕ್ಕಂತೆ ಬಡ್ತಿ ನೀಡಬಹುದಾದ ಯಾವ ಹುದ್ದೆಯೂ ಪರಿಷತ್ತಿನಲ್ಲಿ ಪ್ರಸ್ತುತ
ಇಲ್ಲವಾದ್ದರಿಂದ ನಿಮ್ಮ ಕೋರಿಕೆಯನ್ನು ಈ ಮೂಲಕ ನಿರಾಕರಿಸಲಾಗಿದೆ.

ಆಡಳಿತಾಧಿಕಾರಿಗಳು

ರಿಗೆ,

ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಬೆಂಗಳೂರು.

ಪ್ರತಿ : ನಕಲು ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮನವರ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ.

ಗಂಗಲಕ್ಷ್ಮಮ್ಮ

EXECUTIVE OFFICER

Karnataka Chitrikala Parishath
"Art Complex" Kumar Krupa Road,
Bangalore - 560 001.

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ANNEXURE-E

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಆರ್ಟ್ ಕಾಂಪ್ಲೆಕ್ಸ್, ಕುಮಾರ ಕೃಷ್ಣ ರಸ್ತೆ, ಬೆಂಗಳೂರು-01.

ಕ್ರ: ಚಕಪ :31:2009:442

ದಿನಾಂಕ : 06.10.2009

: ಹಿಂಬರಹ :

ಉಲ್ಲೇಖ: ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ, ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್, ಇವರು ಮುಂಬಡ್ತಿ
ಕೋರಿರುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖದಲ್ಲಿ ಕಾಣಿಸಿದ ಅರ್ಜಿಯಲ್ಲಿ 2008ನೇ ಸಾಲಿನಲ್ಲಿ ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ.
ಪರೀಕ್ಷೆಯಲ್ಲಿ ಉತ್ತೀರ್ಣರಾಗಿರುವುದರಿಂದ ಮುಂಬಡ್ತಿ ನೀಡಬೇಕೆಂದು ನೀವು ನೀಡಿರುವ
ಕೋರಿಕೆಯನ್ನು ಪರಿಶೀಲಿಸಿ, ಈ ಹಿಂದೆಯೂ ದಿನಾಂಕ : 20.08.2009 ರಂದು ಇದೇ
ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ದಿನಾಂಕ : 25.08.2009 ರಂದು ನಿಮಗೆ ಹಿಂಬರಹ ನೀಡಲಾಗಿದೆ.

ನಿಮ್ಮ ವಿದ್ಯಾರ್ಹತೆಗೆ ತಕ್ಕಂತೆ ಮುಂಬಡ್ತಿ ನೀಡಬಹುದಾದ ಯಾವ ಹುದ್ದೆಯೂ
ಪರಿಷತ್ತಿನಲ್ಲಿ ಇಲ್ಲವಾದ್ದರಿಂದ ನಿಮ್ಮ ಕೋರಿಕೆಯನ್ನು ನಿರಾಕರಿಸಲಾಗಿದೆ.

ಎಂ.ಎ. ಆಡಳಿತಾಧಿಕಾರಿಗಳು. 7/10/09

ರಿಗೆ,

ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಬೆಂಗಳೂರು.

ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
7/10/09

ಪ್ರತಿ : ೧) ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಕಾರಿಗಳು, ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು, ಬೆಂಗಳೂರು.

೨) ಆಡಳಿತಾಧಿಕಾರಿಗಳ ಆಪ್ತ ಸಹಾಯಕರು.

೩) ನಕಲು ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮನವರ ವೈಯಕ್ತಿಕ ಕಡತಕ್ಕೆ

ನಕಲು
ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ

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ANNEXURE-F

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಆರ್ಟ್ ಕಾಂಪ್ಲೆಕ್ಸ್, ಕುಮಾರ ಕ್ರಷ್ಣ ರಸ್ತೆ, ಬೆಂಗಳೂರು - 01.

ಕ್ರ.ಸಂ: ಚಕಪ/64/2010

ದಿನಾಂಕ : 14-05-2010

: ಅಧಿಕೃತ ಜ್ಞಾಪನ :

ವಿಷಯ : ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿಗೆ ಸಂಬಂಧಿಸಿದ ವಿವಿಧ ಹುದ್ದೆಗಳ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯನ್ನು ಪ್ರಚೂರ
ಪಡಿಸುವ ಬಗ್ಗೆ.

ಉಲ್ಲೇಖ: ೧) ಕರ್ನಾಟಕ ಸರ್ಕಾರ, ಬೆಂಗಳೂರು, ಇವರ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ: ಎಸ್.ಎ./19 ಸ/
ಎಸ್.ಆರ್ 2008, ಬೆಂಗಳೂರು, ದಿನಾಂಕ : 09-11-2009.

೨) ಆಡಳಿತಾಧಿಕಾರಿಯವರ ಅಧಿಕೃತ ಜ್ಞಾಪನ ಸಂಖ್ಯೆ: ಚಕಪ/64/09-10
ದಿನಾಂಕ: 13-05-2010.

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನ ವಿವಿಧ ವೃಂದಗಳಲ್ಲಿ ಸಿಬ್ಬಂದಿಯವರು ನೇಮಕಗೊಂಡು ಕರ್ತವ್ಯ
ನಿರ್ವಹಿಸುತ್ತಾರೆ. ಪರಿಷತ್ತಿನ ಹಲವು ಸಿಬ್ಬಂದಿಯವರು ಆರಂಭದಲ್ಲಿ ಸಂಚಿತ ವೇತನದಲ್ಲಿ ನೇಮಕಗೊಂಡಿದ್ದು,
ನಂತರದ ದಿನಗಳಲ್ಲಿ ವೇತನ ಶ್ರೇಣಿಯನ್ನು ಪಡೆದಿರುತ್ತಾರೆ.

ಪ್ರಸ್ತುತ ಸಂಸ್ಥೆಯಲ್ಲಿ ಲಭ್ಯವಿರುವ ದಾಖಲೆಗಳನ್ನು ಮತ್ತು ಸಿಬ್ಬಂದಿಯವರ ಸೇವಾ ಪುಸ್ತಕವನ್ನು
ಪರಿಶೀಲಿಸಿಕೊಂಡು ವಿವಿಧ ವೃಂದಗಳಲ್ಲಿ ಬರುವ ಸಿಬ್ಬಂದಿಯವರ ತಾತ್ಕಾಲಿಕ ಸೇವಾ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯನ್ನು
ದಿನಾಂಕ : 01-01-2010 ರಲ್ಲಿದ್ದಂತೆ ಸರ್ಕಾರದ ದಿನಾಂಕ : 09-11-2009ರ ಅಧಿಸೂಚನೆ
ನಿಯಮಗಳಡಿಯಲ್ಲಿ ಸಿದ್ಧಪಡಿಸಿ ಎಲ್ಲಾ ವರ್ಗದ ಸಿಬ್ಬಂದಿಯವರ ಮಾಹಿತಿಗಾಗಿ ಉಲ್ಲೇಖ (2) ರ ಅಧಿಕೃತ
ಜ್ಞಾಪನರನ್ವಯ ಪ್ರಚೂರ ಪಡಿಸಲಾಗಿದೆ.

ಈ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯನ್ನು ತಮ್ಮ ಮಾಹಿತಿಗಾಗಿ ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಲಾಗಿದೆ. ಈ ಬಗ್ಗೆ
ಸೇವಾ ವಿವರಗಳನ್ನು ಸಿಬ್ಬಂದಿಯವರು ಪರಿಶೀಲಿಸಿಕೊಂಡು -ಯಾವುದೇ ಅಧಿಕಾರಿ/ಸಿಬ್ಬಂದಿಯವರ ಹೆಸರು
ಬಿಟ್ಟುಹೋಗಿದ್ದಲ್ಲಿ ಅಥವಾ ಜೇಷ್ಠತಾ ಪಟ್ಟಿಯಲ್ಲಿನ ವಿವರಗಳ ಬಗ್ಗೆ ಏನಾದರೂ ಆಕ್ಷೇಪಣೆ ಇದ್ದಲ್ಲಿ
ಆವುಗಳನ್ನು ಸರಿಪಡಿಸುವ ಸಲುವಾಗಿ ಆಕ್ಷೇಪಣೆಯನ್ನು ಸಮರ್ಪಿಸುವಂತಹ ಸೂಕ್ತ ದಾಖಲಾತಿಗಳೊಂದಿಗೆ
ಮನವಿಯನ್ನು ದಿನಾಂಕ : 28-05-2010 ರೊಳಗೆ ಸಲ್ಲಿಸಲು ಸೂಚಿಸಿದೆ.

ನಿಗದಿತ ಅವಧಿಯೊಳಗೆ ಯಾವುದೇ ಆಕ್ಷೇಪಣೆ ಬಾರದಿದ್ದಲ್ಲಿ ಈಗ ಪ್ರಚೂರ ಪಡಿಸಿರುವ ಪಟ್ಟಿಯನ್ನು
ಅಂತಿಮಗೊಳಿಸಿ ಸ್ಥಿರ / ಖಾಯಂ ಪಟ್ಟಿಯನ್ನು ಪ್ರಚೂರಪಡಿಸಲಾಗುವುದು.

ಮುಖ್ಯ ಆಡಳಿತಾಧಿಕಾರಿ.

ಪ್ರತಿಗಳು :

ಎಲ್ಲಾ ಸಿಬ್ಬಂದಿಯವರ ಮಾಹಿತಿಗಾಗಿ

(33)

ANNEXURE-6

KA / BG - GPO / 2515 / WPP-47 / 2009 - 2011



ಕರ್ನಾಟಕ ರಾಜ್ಯ

ಅಧಿಕೃತವಾಗಿ ಪ್ರಕಟಿಸಲಾದುದು
ವಿಶೇಷ ಪತ್ರಿಕೆ

ಭಾಗ - IV-A	ಪೊರಟವರು, ಮಂಗಳವಾರ, ನವೆಂಬರ್ ೧೦, ೨೦೦೯ (ಕಾರ್ತಿಕ ೧೯, ಶಕ ವರ್ಷ ೧೯೩೧)	ನಂ. ೧೧೧೩
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CO-OPERATION SECRETARIAT

NOTIFICATION

No. SAYI 19 CSR 2008, Bangalore, Dated: 9th November, 2009

Whereas the draft of the Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of service of employees) Regulations, 2009, which the Karnataka Chitrakale Parishath proposes to make in exercise of the powers conferred by section 10 and 27A of the Karnataka Societies Registration Act, 1960 (Karnataka Act 17 of 1960) read with Government order no Sa.1.10.sa sam no. 2009 dated 10-7-2009 was published in Karnataka gazette part IV-A dated 3-7-2009 and inviting objections and suggestions from public.;

And Whereas, the Gazette was made available to public on 3rd July 2009.

And whereas, no objection and suggestion have been received by the Chitrakala parishath and State Government.

Now, therefore in exercise of powers conferred by section 10 and 27A of the Karnataka Societies Registration Act, 1960 (Karnataka Act 17 of 1960) read with Government order no Sa.1.10.sa sam no. 2009 dated 10-7-2009 issued by Karnataka Government, the Karnataka Chitrakala parishath hereby makes the following regulations, namely:-

1. **Title and commencement :** (1) These regulations may be called the Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and conditions of service of employees) Regulations, 2009.

(2) They shall come into force from the date of Registration under Section 10(2) of Societies Registration Act, 1960.

2. **Definitions :** (1) In these regulations, unless the context otherwise requires -

(a) "**Act**" means Karnataka Societies Registration Act 1960

(b) "**Appointing Authority**" means the Administrative committee;

(c) "**Disciplinary Authority**" means the Chairman of the Administrative Committee and other authorities specified in the schedule.

(d) "**Governing Body**" means the Executive Committee of the Parishath elected by the general body of the Parishath, as defined in clause (a) of section 2 of the Karnataka Societies Registration Act 1960;

(e) "**Employee**" means Employee of the Parishath and the Fine Arts College but does not include a person appointed on daily wages or on contract basis.

(f) "**Fine Arts College**" means College of Fine Arts, Chitrakala Parishath affiliated to the Bangalore University.

(g) "**Form**" means a form appended to these rules;

(h) "**Principal**" means The Principal of the College of Fine Arts;

(i) "**Parishath**" means The Karnataka Chitrakala Parishath;

(j) "**Schedule**" means The Schedules appended to these regulations.

(k) "**Administrative Committee**" means the committee constituted under Regulation 5 by the Government for purposes of direct recruitment, Promotion and disciplinary proceedings in respect of the Employees of the Parishath and College of Fine Arts

(2) Words used but not defined in these regulations shall have the meaning assigned to them in The Karnataka Societies Registration Act or as the case may be in the rules made or deemed to have been made under the Karnataka State Civil Services Act, 1978 (Karnataka Act 14 of 1990).

3. **Applications of Rules applicable to the Government Servants to the employees of the Karnataka Chitrakala Parishath/-** The provisions of following rules save as otherwise provided in these regulations, shall mutatis mutandis apply to the employees of the Karnataka Chitrakala Parishath and the College of Fine Arts, namely:-

(1) The Karnataka Civil Service Rules.

(2) The Karnataka Government Servants (Seniority) Rules, 1957.

(3) The Karnataka Civil Services (Conduct) Rules, 1977.

(4) The Karnataka Civil Services (General Recruitment) Rules, 1977 and the Karnataka Civil Services (Probation) Rules, 1977.

(5) All other rules made or deemed to have been made under the Karnataka State Civil Services Act, 1978 (Karnataka Act 14 of 1990).

4. Method of recruitment and minimum qualification etc., (1) Subject to the other provisions in these regulations, the category of posts, number and the method of recruitment and the minimum qualification if any in the Parishath and the College of Fine Arts shall be as specified in the Schedule I and II.

(2) Where method of recruitment is not specified in the schedules, the posts shall be filled by -

(a) direct recruitment by the Administrative Committee or

(b) by promotion. The employees shall be promoted based on their seniority cum merit except the post of the Principal which shall be filled by promotion by selection cum merit, as may be decided by the Administrative Committee.

(c) The policy relating to reservation for SC/ST and other categories shall be followed for direct recruitment.

(d) A State Government employee of equivalent cadre may be appointed on deputation. A retired government servant on contract basis on a consolidated salary or such term as it deems fit may also be appointed by the Administrative Committee.

5. 1. Composition of Administrative committee: (1) The Administrative Committee shall have a maximum of seven members comprising of a chairman and a Secretary, of which two subject experts shall be members for the purpose of recruitment only. The Committee consists of the following members

(1) Secretary, Co-operation as chairman

(2) Commissioner, Directorate of Collegiate Education as member

(3) General Secretary of the Parishath as member

(4) Principal, College of Fine Arts as member secretary.

(5) Director of Technical Education Directorate as member

(6) Two subject experts

Provided that, in case of disciplinary proceedings against the Principal of the college of Fine Arts, he shall be excluded from the Administrative committee in all the proceedings held for that specific purpose.

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(2) Notwithstanding anything contained in sub Regulation (1) above and clause (j) of Regulation whenever an Administrator is appointed to the Parishath under section 27A of the Act, he shall exercise all the powers of the Administrative Committee during the tenure of such appointment.

(3) The Selection Committee shall call for applications from all eligible candidates after giving publicity through Newspaper having wide circulation. The Selection Committee shall prepare a merit list of the candidates based on the merits calculated on the basis of percentage of Marks secured in the qualifying examination and call for interview in the ratio 1:3 of the number of vacancies notified and the persons to be interviewed. The maximum marks for interview shall not exceed 12.5 percent. The final merit list shall be prepared based on the marks secured in the qualifying examination and marks obtained in the interview. The number of persons appointed by such selection shall be equal to the number of vacancies notified in the newspaper.

Provided that if two or more candidates have secured equal number of total marks in the qualifying examination and in the interview, the order of merit in respect of such candidates shall be fixed on the basis of their age.

6. Authority to institute proceedings - (1) The Administrative Committee or Disciplinary Authority, as the case may be mentioned in Schedule III may impose on the employee penalties specified in clause (i) to (iii) or (iv) to (viii) as the case may be of rule 8 of the Karnataka Civil Services (Classification, Control and Appeal) Rules, 1957 except after:-

- (a) informing the employee in writing of proposal to take action against him and of imputation of misconduct or misbehavior on which it is proposed to be taken and giving him a reasonable opportunity for making such representation as he may make against the proposals; and
 - (b) such representation or explanation, if any, is considered by the Head of the institution as the case may be.
- (2) The record of proceedings in all cases shall be a "Speaking order".
 - (3) After the inquiry, the following shall also be made available to the employee:
 - (i) a copy of the intimation to the employee of the proposal to take action against him;
 - (ii) a copy of the statement of imputations of misconduct or misbehavior communicated to him;
 - (iii) his/her representations if any;
 - (iv) the evidence produced during the inquiry, if any;
 - (v) the finding on each imputation of misconduct or misbehavior; and
 - (vi) the orders on the case together with reasons therefore.
 - (4) The disciplinary authority shall consider the report of inquiry and record its findings on each charge.

(5) If the disciplinary authority having regard to its findings on the charge is of the opinion that any of the penalties specified in clauses (iii) to (viii) of rule 8 of the Karnataka Civil Services (Classification, Control and Appeal) Rules, 1957 should be imposed, it shall, furnish to the employee a copy of the report of inquiry officer and the statement of its findings, if any.

(6) The disciplinary authority shall also consider the representation, if any, made by the employee in response to the notice before imposing any of the penalties on such employee.

7. **Communication of orders and appeal :** Orders passed by the Disciplinary Authority shall be communicated to the employee. Any appeal against any of the penalties imposed by the disciplinary authority shall lie to the Administrative Committee and any appeal against the orders of the administrative Committee shall lie to the Government. Every order of the disciplinary authority imposing any penalty or otherwise affecting his conditions of service to his prejudice, shall be served in person and communicated to the employee by registered post acknowledgement due and copy of the order be sent to the competent authority if any, at the same time.

8. **Duties of the employees of the Parishath and College of Fine Arts :** (1) (a) Every employee shall.

(i) be punctual in attendance in respect of his work and any other work connected with the duties assigned to him by the head of the Management.

(ii) Abide by the rules and regulations of the institution and show due respect to constituted authority.

(b) no employee shall.

(i) knowingly or willfully neglect his duties.

(ii) remain absent from the institution without leave or without the previous permission of the head of the institution ;

(iii) include in, or encourage, any form of malpractice connected with examinations of any other College activity ;

(iv) accept private tuition.

(2) The following also constitute misconduct.

(a) indulging in communal activities or propagating Casteism. —

(b) ill-treatment of students, other employees and indulging in rowdy or disorderly behaviour or violence;

(c) taking part in politics or elections;

(d) joining an association the object of which is prejudicial to the interest of the Parishath and College of Fine Arts or the state or country;

(e) participation in a demonstration or strike;

(f) criticizing in public and current policies of State or Central Government and the Parishath.

- (g) accepting contribution or raising collection without previous sanction of the **Governing body**;
- (h) bringing or attempt to bring political or other influence for furtherance of his own interest;
- (i) accepting any gift, except a casual meal, lift or other social hospitality. However, on social occasions a gift could be accepted if its value is less than Rs 3,000/-;
- (j) giving, taking or abetting the giving or taking of dowry;
- (k) engaging in any private trade or employment, negotiate for or undertake any other work or employment without prior permission;
- (l) writing or editing any text book while being a member without prior permission;
- (m) speculating in stock, share or investment;
- (n) becoming insolvent and / or getting into habitual indebtedness;
- (o) Non-submission of Annual Assets and Liability Returns;
- (p) Acquisition, disposal of movable or immovable properties without previous sanction of the **Governing body** or entering into any transaction with any foreigner or foreign organization or Government for acquisition and disposal of property;
- (q) Acting as a legal guardian of minor other than his dependent without the previous sanction of **Governing body**;
- (r) Contracting another marriage or entering into a bigamous marriage against the personal law of employee;
- (s) Consumption of intoxicating drugs and drinks;
- (t) Inciting students to engage in anti-management Conduct, including strikes or such other things.

Note: Where an employee engages himself in any private trade or work as in sl.no.(k) above, 10% of the remuneration obtained by him/her for the work or trade shall be paid to the parishath.

CHAPTER - V

General

9. **Pension:** Notwithstanding anything contained in these rules, an employee of the Parishath shall not be eligible for pension.

SCHEDULE - I

COLLEGE OF FINE ARTS

TEACHING AND TECHNICAL POSTS

Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
01.	Principal (20025-28275)	1		By promotion from the cadre of Professor/Reader If no suitable person is available for promotion, by direct recruitment	For promotion : 1) Must be holder of a Master's degree in Fine Arts/Visual Arts. 2) Must have put in a service of not less than ten years in the cadre of Reader / Lecturer Preference be given to person holding a doctorate in related subject. For direct recruitment : 1) Must be holder of a doctorate degree in Fine Arts / Visual Arts. 2) Must have teaching experience of not less than ten years out of which not less than five years shall be in the cadre of Reader in any Fine Arts / Visual Arts college recognized by Government
02	Professor (18150-26925)	5		By promotion from the cadre of Reader If no suitable person is available for promotion, by direct recruitment	For promotion : 1) Must be holder of a Master's degree in Fine Arts/Visual Arts. 2) Must have put in a service of not less than ten years in the cadre of Reader / Lecturer Preference be given to person holding a doctorate in related subject.

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Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
1	2	3	4	5	6
					For direct recruitment : 1) Must be holder of a doctorate degree in Fine Arts / Visual Arts. 2) Must have teaching experience of not less than ten years out of which not less than five years shall be in the cadre of Reader in any Fine Arts / Visual Arts college recognized by Government
03.	Reader (14050-250501) Painting : 02 Sculpture : 02 Art History : 02 Applied Art : 02 Graphic Art : 02	10		By promotion from the cadre of Lecturer, if no suitable person is available for promotion, by direct recruitment	For promotion: 1) Must be holder of a Master's Degree in Fine Arts/Visual Arts. Preference be given to persons holding a doctorate in the related subject. 2) Must have put in a service not less than ten years in the cadre of Reader / Lecturer. For direct recruitment : 1) Must be holder of a Master Degree in Fine Arts/Visual Arts. Preference be given to person holding a doctorate in the related subject. 2) Must have put in a teaching experience of not less than ten years out of which five years shall be in the cadre of Lecturer in any Visual Arts/Fine Arts College recognized by the Government.
04.	Lecturer (11400-21600) Painting : 08 Sculpture : 02 Art History : 03 Applied Art : 07 Graphic Art : 02	22	—	By Direct recruitment	1) Must be holder of a Masters Degree in fine Arts/Visual Arts. 2) Must have passed National Education Test (NET) or State Education Test in accordance with U.G.C. norms.

NON TEACHING STAFF

Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
01.	Superintendent (10000-18150)	1		5	6
				By promotion from the cadre of First Division Assistant and Stenographer on the basis of combined seniority. Seniority being determined on the basis of length of service in respective cadre.	Must have put in a service of not less than five years in the cadre of First Division Assistant or Stenographer as the case may be. In respect of Stenographers, must have worked as First Division Assistant for a period of not less than one year in addition to the service specified above.
02.	Librarian (10800-20025)	1		By Direct recruitment	Must be holder of a degree in Library Science. Preference be given to persons holding a master's degree in Library Science.
03	Accountant (8000-14800)	1		By direct recruitment	Must be a holder of degree in Commerce with 5 years experience in accounting and with knowledge of Computer and Tally.
04.	First Division Asst. (7275-13350)	4		Fifty percent by direct recruitment and fifty percent by promotion from the cadre of Second Division Assistant. Provided that a stenographer may be posted to work as First Division Assistant for period of one year on the basis of seniority.	For direct recruitment: Must be holder of a degree For promotion: Must have put in a service of not less than five years in the cadre of Second Division Assistant.
05.	Stenographer (7275-13350)	2		By promotion from the cadre of typist	Must have passed P.U.C or equivalent qualification and Senior Shorthand and Senior Typewriting in Kannada and English conducted by the department of public instruction or diploma in Secretarial Practice in an institution recognized by Government./Computer knowledge is must.

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Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
06.	Computer Assistant/ Junior Programmer (8825-16000)	1		By direct recruitment	1. Must be holder of a degree. 2. Must be holder of a certificate and computer graphics or post graduate diploma in CA from an institution recognized by Government.
07.	Second Division Assistant (5800-10500)	4		Fifty percent by promotion from any of the cadre in group "D" service on the basis of seniority and fifty percent by direct recruitment.	For direct recruitment : Must be holder of P.U.C For promotion : 1) Must have passed P.U.C or possess equivalent qualification. 2) Must have put in service of not less than seven years in any one or more of the cadres in Group "D" service.
08.	Typist (5800-10500)	1		By direct recruitment	Must have passed P.U.C or equivalent qualification and Senior Typewriting in Kannada and English conducted by the department of public instruction or diploma in Secretarial Practice in an Institution recognized by Government/ Computer knowledge is must
09.	Group 'D' posts Attenders (5200-8200)	1		By direct recruitment	Must have passed IXth standard examination or possess equivalent qualification
10.	Group 'D' posts (4800-7275) Peons/Watchman /Sweepers	14		By direct recruitment	Must have passed IXth standard examination or possess equivalent qualification.

SCHEDULE - II

KARNATAKA CHITRAKALA PARISHATH

ADMINISTRATIVE POSTS

Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
1	2	3	4	5	6
01.	Administrative officer (18150-26925) Or Consolidated salary	1		By deputation from state Govt. service or a retired Govt. officer on contract basis.	

MINISTERIAL POSTS

Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
1	2	3	4	5	6
01	Curator (11400-21600)	1		By direct recruitment	Must be holder of a Master degree in Visual Arts. Must have worked as Lecturer in any College of Art for a minimum of five years.
02	Gallery Supervisor / Art Teacher (8825-16000)	1		By direct recruitment	Must be holder of a degree in Visual Arts. With specialization in Painting/ Graphic Art/ Applied Art/Sculpture/ Art History
03	Assistant Librarian (8000-14800)	1		By direct recruitment	Must be holder of a Degree in Library Science.
04	Accountant (9000-14800)	1		By direct recruitment	Must be a holder of degree in Commerce with 5 years experience in accounting and with knowledge of Computer and Tally.

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Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
05.	1 First Division Asst. (7275-13350)	3 4	4	5 Fifty percent by direct recruitment and fifty percent by promotion from the cadre of Second Division Assistant. Provided that a stenographer may be posted to work as First Division Assistant for period of one year on the basis of seniority.	6 For direct recruitment : Must be holder of a degree For promotion : Must have put in a service of not less than five years in the cadre of Second Division Assistant.
06.	Stenographer (7275-13350)	1		Direct recruitment	Must have passed P.U.C or equivalent qualification and Senior Shortland and Senior Typewriting in Kannada and English conducted by the department of public instruction or diploma in Secretarial Practice in an institution recognized by Government / Computer knowledge is must
07.	Second Division Assistant (5800-10500)	5		Fifty percent by promotion from any of the cadre in group "D" service on the basis of seniority and fifty percent by direct recruitment.	For direct recruitment : Must be holder of P.U.C For promotion : 1) Must have passed P.U.C or possess equivalent qualification. 2) Must have put in service of not less than seven years in any one or more of the cadres in Group "D" service.
08	Receptionist (5800-10500)	1		By direct recruitment	1) Must have passed P.U.C or possess equivalent qualification. 2) Must be able to speak English fluently.

Sl No.	Name of the Post And Scale of pay	Number of Posts		Method of Recruitment	Minimum Qualification
		Permanent	Temporary		
1	2	3	4	5	6
09.	Electrician (5800-10500)	1		By direct recruitment	Must be holder of a two years course certificate in Electrician Audio granted by K.T.I. recognized by Parishath.
10.	Art-Mart Gallery Assistant (5200-8200)	1		By direct recruitment	Must have passed S.S.L.C or possess equivalent qualification.
11.	Driver (5500-9500)	1		By direct recruitment	1. Must have passed S.S.L.C. or possess equivalent qualification. 2. Must be holder of a current light motor vehicle driving license.
12.	Group 'D' posts Attenders (5200-8200)	2		By direct recruitment	Must have passed IXth standard examination or possess equivalent qualification
13.	Gallery Attender (4800-7275)	13		By direct recruitment	Must have passed IXth standard examination or possess equivalent qualification
14.	Group 'D' posts (4800-7275) Garden Supervisor 01 Gardeners/ Sweepers 13	14		By direct recruitment	Must have passed VIII standard examination or possess equivalent qualification.

SCHEDULE - III

PART - 1

COLLEGE OF FINE ARTS

Cadre of Post	Appointing Authority	Disciplinary Authority	Nature of Penalty	Appellate Authority
1	2	3	4	5
Principal	Administrative Committee	Chairman of Administrative Committee	(i) to (viii)	Administrative Committee
Professor	Administrative Committee	Chairman of Administrative Committee	(i) to (viii)	Administrative Committee
Reader	Administrative Committee	Chairman of Administrative Committee	(i) to (viii)	Administrative Committee
Lecturer	Administrative Committee	Chairman of Administrative Committee	(i) to (iv) (iv) to (viii)	Administrative Committee
Superintendent	Administrative Committee	(1) Principal (2) Chairman of the Administrative Committee	(i) to (iv) (iv) to (viii)	Administrative Committee
F.D.A.	Administrative Committee	(1) Principal (2) Chairman of the Administrative Committee	(i) to (iv) (iv) to (viii)	Administrative Committee
S.D.A.	Administrative Committee	Principal	(i) to (viii)	Administrative Committee
Group D.	Administrative Committee	Principal	(i) to (viii)	Administrative Committee

PART - 2

KARNATAKA CHITRAKALA PARISHATH

Administrative Officer	Administrative Committee	Chairman of Administrative Committee	(i) to (viii)	Administrative Committee
Curator	Administrative Committee	Chairman of Administrative Committee	(i) to (viii)	Administrative Committee
Gallery Supervisor	Administrative Committee	1) Administrative Officer 2) Chairman of Administrative Committee	(i) to (iv) (v) to (viii)	Administrative Committee
F.D.A. & Stenographer	Chairman of Administrative Committee	1) Administrative Officer 2) Chairman of Administrative Committee	(i) to (iv) (v) to (viii)	Administrative Committee
Gallery Asst.	Chairman of Administrative Committee	1) Administrative Officer 2) Chairman of Administrative Committee	(i) to (iv) (v) to (viii)	Administrative Committee
S.D.A.	Chairman of Administrative Committee	1) Administrative Officer 2) Chairman of Administrative Committee	(i) to (iv) (v) to (viii)	Administrative Committee
Group D & Driver	Chairman of Administrative Committee	1) Administrative Officer 2) Chairman of Administrative Committee	(i) to (iv) (v) to (viii)	Administrative Committee

By order and in the name of the Governor of Karnataka

NANJUNDAPPA

Under Secretary to Government
Co-operation Department

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್, ಬೆಂಗಳೂರು, ೫೨

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ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು, ಅರ್ಬಿ ಕಾಂಪ್ಲೆಕ್ಸ್, ಕುಮಾರ ಕೃಪಾ ರಸ್ತೆ, ಬೆಂಗಳೂರು - 560001.

ANNEXURE-A

ದಿನಾಂಕ : 01-01-2011 ರಲ್ಲಿವೊಂದೇ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯ ಅಂತಿಮ ಚೇಷ್ಟಾ ಪಟ್ಟಿ

ವೇತನ ಶ್ರೇಣಿ : ರೂ.4800 -7275

ವೃಂದ : ಗ್ಯಾಜೆಟ್

ಮಂಜೂರಾದ ಒಟ್ಟು ಹುದ್ದೆಗಳು - 13

ಕ್ರ. ಸಂ.	ಹೆಸರು	ಹುಟ್ಟಿದ ದಿನಾಂಕ	ಸೇವೆಗೆ ಸೇರಿದ ದಿನಾಂಕ / ಹುದ್ದೆ	ಪ್ರಸ್ತುತ ಹುದ್ದೆ ಯಲ್ಲಿ ಕರ್ತವ್ಯ ನಿರ್ವಹಿಸುತ್ತಿರುವ ದಿನಾಂಕ	ಪ್ರಸ್ತುತ ಇರುವ ಹುದ್ದೆಗೆ ಸೇರಿದ ನೇಮಕಾತಿ/ ಪದೋನ್ನತಿ	ವಿಶ್ವಕೋಶ	ವರ್ಗ	ಪರಾ
1	2	3	4	5	6	7	8	9
1.	ಶ್ರೀಮತಿ ಧಾಯಾ ಕೆ.ಎಸ್.	01-10-1960	03-05-1987	03-05-1987	ನೇರ ನೇಮಕಾತಿ	--	ಸಾಮಾನ್ಯ ವರ್ಗ	
2.	ಶ್ರೀಮತಿ ಮುದೇವಿ	23-06-1969	01-09-1994	01-09-1994	ನೇರ ನೇಮಕಾತಿ	--	ಸಾಮಾನ್ಯ ವರ್ಗ	
3.	ಶ್ರೀ ಶಿವನಾಗಪ್ಪ	05-01-1973	01-02-1995	01-02-1995	ನೇರ ನೇಮಕಾತಿ	4 ನೇ ತರಗತಿ	ಸಾಮಾನ್ಯ ವರ್ಗ	
4.	ಶ್ರೀ ಮಂಜುನಾಥ ಎಸ್.	20-07-1974	26-06-1996	26-06-1996	ನೇರ ನೇಮಕಾತಿ	ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ. ಅನುತ್ತೀರ್ಣ	ಸಾಮಾನ್ಯ ವರ್ಗ	
5.	ಶ್ರೀಮತಿ ಪರಿಮಳ ಎಸ್.ಇ.	10-03-1962	01-04-1997	01-04-1997	ನೇರ ನೇಮಕಾತಿ	9 ನೇ ತರಗತಿ	ಸಾಮಾನ್ಯ ವರ್ಗ	
6.	ಶ್ರೀಮತಿ ಗಂಗಾಕ್ಷಮ್ಮ	24-12-1964	15-12-1997	15-12-1997	ನೇರ ನೇಮಕಾತಿ	ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ.	ಸಾಮಾನ್ಯ ವರ್ಗ	
7.	ಶ್ರೀ ಶಿವಪ್ರಸಾದ್	20-07-1968	18-05-1999	18-05-1999	ನೇರ ನೇಮಕಾತಿ	7 ನೇ ತರಗತಿ	ಸಾಮಾನ್ಯ ವರ್ಗ	
8.	ಶ್ರೀಮತಿ ಪದ್ಮ	20-07-1975	28-07-1999	28-07-1999	ನೇರ ನೇಮಕಾತಿ	4 ನೇ ತರಗತಿ	ಸಾಮಾನ್ಯ ವರ್ಗ	
9.	ಶ್ರೀಮತಿ ರಾಧಾ ಎಸ್.ಎಸ್.	07-12-1970	01-07-2007	01-07-2007	ನೇರ ನೇಮಕಾತಿ	7 ನೇ ತರಗತಿ	ಸಾಮಾನ್ಯ ವರ್ಗ	
	ಸಾಲು ಹುದ್ದೆಗಳು ಖಾಲಿ ಇದೆ							

ಟಿಪ್ಪಣಿ : 13 ಹುದ್ದೆಗಳು ಮಂಜೂರಾಗಿದ್ದು 4 ಹುದ್ದೆಗಳು ಖಾಲಿ ಇವೆ.

ಎ.ಎ.ಎ. 3/2

ಅಧಿಕಾರಾಧಿಕಾರಿ

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು, ಬೆಂಗಳೂರು

22261816

(49)

ANNEXURE- J

ಮಾಹಿತಿ ಹಕ್ಕು ಅಧಿನಿಯಮ(2005)ರ ಸೆಕ್ಷನ್ 6(1)ನೇ ಪ್ರಕರಣ

ಅರ್ಜಿದಾರನ ಹೆಸರು :	ಗೃಹಾ. ನಾಗರಾಜ (ವಕೀಲರಾ)
ವಿಳಾಸ :	ನಂ. 185, ಲೋಕಲನೇ ಮಡಕಿ, ಶೇಷಾದ್ರಿಪುರಂ ಹಾಸ್ಟೆಲ್ ಬಿಲ್ಡಿಂಗ್, ರಾಜಿವ್ ಭವನ. ರಾಜೀವ್ ಗಾಂಧಿ ಸರ್ಕಲ್, ಶಿವದ್ರಿವಿಳಿ ಬೆಂಗಳೂರು - 560020
ಕೋರಿದ ದಾಖಲೆ ವಿವರ :	① Seniority list of Gallery Attenders as on 01-01-2010 ② Promotion order of Sri Lokesh as Second Division Assistant 2008-09 ③ Information regarding under what Rules promotion was given to Smt Muneeramma as SDA & higher pay scale was given Smt Muneeramma 2014
ಮೇಲಿನ ವಿವರಗಳು ಯಾವ ವರ್ಷಕ್ಕೆ ಸಂಬಂಧಿಸಿವೆ ?	① 2010 ② 2008-09 ③ 2014
ಮಾಹಿತಿಯನ್ನು ಕೋರಿರುವ ಸಾರ್ವಜನಿಕ ಮಾಹಿತಿ ಅಧಿಕಾರಿಯ ಪದನಾಮ ಮತ್ತು ವಿಳಾಸ.	④ ದನಶಿವರಾಜ್ ಕೆಎಸ್ಎಸ್ ಚಿತ್ರಣಾ ಮಂಜೇಶ್ ಕೋರಿದ ಕೆ.ಎಸ್. ರೆಡ್ಡಿ ಬೆಂಗಳೂರು
ಪೋಸ್ಟಲ್ ಆರ್ಡರ್/ ಡಿಡಿ/ನಗದು ವಿವರ :	Postal Order 32F. 519821

ಸ್ಥಳ : ಬೆಂಗಳೂರು

ದಿನಾಂಕ



ADVOCATE
185, 1st Floor, Room No. 16
Hostel Building, Idigara Bhavana
Rajiv Gandhi Circle, Sheshadripuram
Bangalore-560020
ADVOCATE
185, 1st Floor, Room No. 16
Hostel Building, Idigara Bhavana
Rajiv Gandhi Circle, Sheshadripuram
Bangalore-560020

J. N. NAGARAJA
Advocate.

(51)

Typed copy
ಶಿರಾ-೨**ಮಾಹಿತಿ ಹಕ್ಕು ಅಧಿನಿಯಮ 2005ರ ಸೆಕ್ಷನ್ 6 (1) ನೇ ಪ್ರಕರಣ**

ಅರ್ಜಿದಾರರ ಹೆಸರು:

ವಿಳಾಸ:

ಇಜಾರಿ ನಾಗರಾಜ್ ವಕೀಲರು

ನಂಬರ್ 185 ಮೊದಲನೇ ಮಹಡಿ

ಕೊಠಡಿ ಸಂಖ್ಯೆ 16 ಹಾಸ್ಟೆಲ್ ಬಿಲ್ಡಿಂಗ್

ಈಡಿಗ ಭವನ ರಾಜೀವ್ ಗಾಂಧಿ ಸರ್ಕಲ್

ಶೇಷಾದ್ರಿಪುರಂ ಬೆಂಗಳೂರು 560020.

ಕೊರಿಯಾ ದಾಖಲೆ ವಿವರ:

Seniority list of Gallery attenders as

on .01.01.2010 Promotion order of

Sri Lokesh ya second division

assistant 2008-09.

Information regarding under what
rules promotion was given to Smt.
Maneeramma SDA and higher pay
scale was given shrimati
Maneeramma 2014

ಮೇಲಿನ ವಿವರಗಳು ಯಾವ

ವರ್ಷಕ್ಕೆ ಸಂಬಂಧಿಸಿವೆ?

2010

2008-09

2014

ಮಾಹಿತಿಯನ್ನು ಕೋರಿರುವ

ಸಾರ್ವಜನಿಕ ಮಾಹಿತಿ ಅಧಿಕಾರಿಯ

ಪದನಾಮ ಮತ್ತು ವಿಳಾಸ.

ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ಕರ್ನಾಟಕ

ಚಿತ್ರಕಲಾ ಪರಿಷತ್ ಕುಮಾರ ಕೃಪ ರಸ್ತೆ

ಬೆಂಗಳೂರು.

ಪೋಸ್ಟಲ್ ಆರ್ಡರ್ ಡಿಡಿ

ನಗದು ವಿವರ:

Postal order 32F 519821.

ಸ್ಥಳ:ಬೆಂಗಳೂರು

ದಿನಾಂಕ:



ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು

'ಆರ್ ಕಾಂಪ್ಲೆಕ್ಸ್', ಕುಮಾರಕೃಷ್ಣ ರಸ್ತೆ, ಬೆಂಗಳೂರು - 560 001
ದೂರವಾಣಿ: +91-080-2226 1816 ಫ್ಯಾಕ್ಸ್: +91-080-2226 3424
ಇಮೇಲ್: chitrakalaparishath@gmail.com
www.karnatakachitrakalaparishath.com

ANNEXURE-K

ಡಾ. ಬಿ.ಎಲ್. ಶಂಕರ್
ಅಧ್ಯಕ್ಷರು

ಡಾ. ವಿ.ಎ. ಜೈ
ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ

ಕ್ರ:ಚಕಪ:230:2015-16

ದಿನಾಂಕ 11.08.2015

ಶ್ರೀ ಇಜಾರಿ ನಾಗರಾಜ್
ವಕೀಲರು, ನಂ.185,
1ನೇ ಮಹಡಿ, ಕೊ.ಸಂಖ್ಯೆ-16
ಹಾಸ್ಟಲ್ ಹಿಂಭಾಗ, ಈಡಿಗ ಭವನ
ರಾಜೀವ್ ಗಾಂಧಿ ಸರ್ಕಲ್, ಶೇಷಾದ್ರಿಪುರಂ
ಬೆಂಗಳೂರು-20.

:ಹಿಂಬರಹ:

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಮಾಹಿತಿ ಹಕ್ಕು ಅಧಿನಿಯಮದಡಿಯಲ್ಲಿ ಮಾಹಿತಿ ಕೋರಿರುವ ಬಗ್ಗೆ
ಉಲ್ಲೇಖ: ತಮ್ಮ ಅರ್ಜಿ ದಿನಾಂಕ 29.07.2015

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು ಸಂಘಗಳ
ನೋಂದಾಯಿತ ಸಂಸ್ಥೆಯಾಗಿದ್ದು, ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದ ಸಿವಿಲ್ ಅಪೀಲ್ ಪ್ರಕರಣ ಸಂಖ್ಯೆ
9017/2013 ಮತ್ತು ನಂ.27734/2012ರನ್ವಯ ಸಂಘ ಸಂಸ್ಥೆಗಳು ಮಾಹಿತಿ ಹಕ್ಕಿನ ವ್ಯಾಪ್ತಿಗೆ
ಬರುವುದಿಲ್ಲವೆಂದು ಆದೇಶವಾಗಿರುವ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು ಸಹ ಮಾಹಿತಿ
ಹಕ್ಕು ಅಧಿನಿಯಮದ ವ್ಯಾಪ್ತಿಗೆ ಬರುವುದಿಲ್ಲವೆಂದು ಈ ಮೂಲಕ ತಮಗೆ ತಿಳಿಸಿ, ತಾವು ಅರ್ಜಿ
ಜೊತೆ ಸಲ್ಲಿಸಿರುವ ರೂ.10/-ಗಳ ಪೋಸ್ಟಲ್ ಆರ್ಡರ್ ಅನ್ನು ಈ ಪತ್ರಕ್ಕೆ ಲಗತ್ತಿಸಿ ಹಿಂದಿರುಗಿಸಲಾಗಿದೆ.

ವಂದನೆಗಳೊಂದಿಗೆ,

ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ

ದಿನಾಂಕ 10/4/16

ಇಂದ:

ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಕೋಣ ರಂಗಸ್ವಾಮಿ
ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಕುಮಾರ ಕೃಷ್ಣ ರಸ್ತೆ, ಬೆಂಗಳೂರು

ಇವರಿಗೆ:

ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಕುಮಾರ ಕೃಷ್ಣ ರಸ್ತೆ, ಬೆಂಗಳೂರು

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯಿಂದ ಗ್ಯಾಲರಿ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಬಡ್ತಿ ನೀಡುವ ಕುರಿತು

ಲಕ್ಷ್ಮಿ ಹಾತ್ರ ಕಾಂತ್ಯ - ದಿನಾಂಕ 19/11/2008

ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನಲ್ಲಿ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯಲ್ಲಿ ಸೇವೆ ಸಲ್ಲಿಸುತ್ತಿರುವ ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ ಅವರ ನಾನು ಬಾವಂದವರಲ್ಲಿ ಅರಿಕೆ ಮಾಡಿಕೊಳ್ಳುವುದೇನೆಂದರೆ,

ದಿನಾಂಕ 15/12/1997 ರಿಂದ ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನಲ್ಲಿ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯಲ್ಲಿ ಸೇವೆ ಸಲ್ಲಿಸುತ್ತಿದ್ದೇನೆ. ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ ಪರೀಕ್ಷೆಯಲ್ಲಿ ದಿನಾಂಕ 5/5/2008ರಂದು ತೇರ್ಗಡೆ ಹೊಂದಿರುತ್ತೇನೆ. ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ ಪರೀಕ್ಷೆಯಲ್ಲಿ ತೇರ್ಗಡೆಹೊಂದಿರುವ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಗಳಿಗೆ ಗ್ಯಾಲರಿ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ (ದ್ವಿತೀಯ ದರ್ಜೆ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಸಮಾನವಾದ ಹುದ್ದೆಗೆ) ಮುಂಬಡ್ತಿ ನೀಡಲು ಅವಕಾಶವಿರುವುದರಿಂದ, ದಿನಾಂಕ 20/8/2009ರಂದು ಮುಂಬಡ್ತಿ ನೀಡುವಂತೆ ಮನವಿಯನ್ನು ತಮಗೆ ಸಲ್ಲಿಸಿದ್ದು, ಹಿಂಬರಹ ಸಂಖ್ಯೆ ಚಿಕಪ: 31: 2009/324 ದಿನಾಂಕ 25/8/2009ರಲ್ಲಿ ನನ್ನ ವಿದ್ಯಾರ್ಹತೆಗೆ ತಕ್ಕಂತೆ ಬಡ್ತಿ ನೀಡಬಹುದಾದ ಯಾವ ಹುದ್ದೆಯೂ ಪರಿಷತ್ತಿನಲ್ಲಿ ಆ ಸಮಯದಲ್ಲಿ ಇಲ್ಲವಾದ್ದರಿಂದ ನನ್ನ ಕೋರಿಕೆಯನ್ನು ನಿರಾಕರಿಸಲಾಯಿತು.

ದಿನಾಂಕ 1/10/2009ರಂದು ಮತ್ತೊಮ್ಮೆ ಮನವಿಯನ್ನು ಸಲ್ಲಿಸಿ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯಿಂದ ಗ್ಯಾಲರಿ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡಲು ಮನವಿಯನ್ನು ಮಾಡಿರುತ್ತೇನೆ. ಹಿಂಬರಹ ಸಂಖ್ಯೆ ಚಿಕಪ: 31: 2009/442 ದಿನಾಂಕ 6/10/2009ರಲ್ಲಿ ನನ್ನ ವಿದ್ಯಾರ್ಹತೆಗೆ ತಕ್ಕಂತೆ ಬಡ್ತಿ ನೀಡಬಹುದಾದ ಯಾವ ಹುದ್ದೆಯೂ ಪರಿಷತ್ತಿನಲ್ಲಿ ಇಲ್ಲವೆಂದು ನನ್ನ ಕೋರಿಕೆಯನ್ನು ನಿರಾಕರಿಸಲಾಗಿದೆಯೆಂದು ತಿಳಿಸಲಾಗಿದೆ.

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ಶ್ರೀ ಲೋಕೇಶ್ ವಾಂಬುಪ್ಪವರು ಸ್ವ. ಜೊತೆಯಲ್ಲಿ ಎಸ್.ಎಸ್.ಎಲ್.ಸಿ ಪರೀಕ್ಷೆಯಲ್ಲಿ ಉತ್ತೀರ್ಣರಾಗಿದ್ದು, ಅವರಿಗೆ ಪರಿಷತ್ತಿನಲ್ಲಿ ದ್ವಿತೀಯ ದರ್ಜೆ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ನೀಡಲಾಗಿದೆ. ಆದುದರಿಂದ, ನಾನಗೂ ಸಹ ಶ್ರೀ ಲೋಕೇಶ್‌ರವರಿಗೆ ಮುಂಬಡ್ತಿ ನೀಡಿರುವಂತೆ, ಗ್ಯಾಲರಿ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಮುಂಬಡ್ತಿ ಕೊರಿ ದಿನಾಂಕ 24/10/2019ರಂದು ಮನವಿಯನ್ನು ಸಲ್ಲಿಸುತ್ತೇನೆ. ಇದೂವರೆವಿಗೂ ತಮ್ಮಿಂದ ಯಾವುದೇ ಪ್ರತಿಕ್ರಿಯೆ ಹೊರಬಿಡ್ತಿರುವುದಿಲ್ಲ.

ಹಾಗೆಯೇ, ನಾನಿಂತ 2 ರಿಂದ 3 ವರ್ಷಗಳು ಸೇವೆಯಲ್ಲಿ ಕಿರಿಯರಾಗಿದ್ದರು. ನನ್ನ ಸೇವೆಯನ್ನು ಪರಿಗಣಿಸದೆ, 2014ರಲ್ಲಿ ಶ್ರೀಮತಿ ಮುನಿರಮ್ಮನವರಿಗೂ ಸಹ ಮುಂಬಡ್ತಿ ನೀಡಲಾಗಿದೆ. ಇದರಿಂದ ನನಗೆ ಅರ್ಥಕ ಸ್ಥಳವಾಗಿದೆ ಹಾಗೂ ಮಾನಸಿಕ ಖಿನ್ನತೆ ಉಂಟಾಗಿದೆ.

ಆದುದರಿಂದ, ಶ್ರೀ ಲೋಕೇಶ್‌ರವರಿಗೆ ಮುಂಬಡ್ತಿ ನೀಡಿರುವ ದಿನಾಂಕದಿಂದಲೇ ಗ್ಯಾಲರಿ ಅಟೆಂಡರ್ ಹುದ್ದೆಯಿಂದ ಗ್ಯಾಲರಿ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ (ದ್ವಿತೀಯ ದರ್ಜೆ ಸಹಾಯಕರ ಹುದ್ದೆಗೆ ಸಮನಾದ ಹುದ್ದೆ) ಮುಂಬಡ್ತಿ ನೀಡುವಂತೆ ಹಾಗೂ ನನಗೆ ಆಗಿರುವ ಅನ್ಯಾಯವನ್ನು ಸರಿಪಡಿಸಬೇಕೆಂದು ಪ್ರಾರ್ಥಿಸುತ್ತೇನೆ.

ವಂದನೆಗಳೊಂದಿಗೆ,

ತಮ್ಮ ವಿಧೇಯಳು,

ಗಂಗಲಕ್ಷ್ಮಮ್ಮ

(ಗಂಗಲಕ್ಷ್ಮಮ್ಮ) 10/4/15

This document is referred to as
Annexure..... in the
affidavit Smt./Sri.....

Oath Commissioner

301830/23

(55)

Sateesh Kotte

(13)



WP NO.39600 OF 2015

ANNEXURE-M

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 22ND DAY OF MAY, 2023

BEFORE

THE HON'BLE MR. JUSTICE E.S. INDIRESH
WRIT PETITION NO.39600 OF 2015 (S-PRO)

BETWEEN:

SMT GANGALAKSHMAMMA
W/O D. RANGASWAMY
AGED ABOUT 50 YEARS,
GALLERY ATTENDER,
KARNATAKA CHITRAKALA PARISHATH,
KUMAR KRUPA ROAD, BENGALURU,
R/AT DOOR NO.8, 'D' BLOCK,
NGO's QUARTERS, 6TH BLOCK,
RAJAJINAGAR,
BENGALURU - 560 010.

...PETITIONER

(BY SRI. M.S. PARTHASARATHI, ADVOCATE)

AND:

1. THE STATE OF KARNATAKA
REP. BY ITS SECRETARY,
CO-OPERATION DEPARTMENT,
M.S. BUILDING,
BENGALURU - 01.
2. THE CHAIRMAN
KARNATAKA CHITRAKALA PARISHATH,
ART COMPLEX,
KUMARA PARK ROAD,
BENGALURU - 560 001.
3. THE PRINCIPAL SECRETARY
KARNATAKA CHITRAKALA PARISHATH,
ART COMPLEX,

Digitally signed by
Advocate M.S.
PARTHASARATHI
HIGH COURT
OF KARNATAKA



This Certified copy contains 3/-
And Copying charges of ₹ 10/-
Received

14

56



WP NO.39600 OF 2015

KUMARA PARK ROAD,
BENGALURU - 560 001.

...RESPONDENTS

(BY SRI. M.S. NAGARAJA, AGA FOR R1;
SRI. PRAKASH T. HEBBAR, ADVOCATE FOR R2 & R3)

THIS WRIT PETITION FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE ENDORSEMENT DATED 06TH OCTOBER, 2009 ISSUED BY THE RESPONDENT NO.3 VIDE ANNEXURE-E; DIRECT THE RESPONDENTS 2 AND 3 TO CONSIDER THE REPRESENTATION DATED 10TH APRIL, 2015 VIDE ANNEXURE-L AND PASS ORDERS ON THE SAID REPRESENTATION, RE-DO THE SENIORITY LIST, AND PROMOTE THE PETITIONER TO THE CADRE OF GALLERY ASSISTANT WITH ALL CONSEQUENTIAL BENEFITS; AND ETC.

THIS PETITION COMING ON FOR ORDERS, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Heard Sri. M.S. Parthasarathi, learned counsel appearing for the petitioner; Sri. M.S. Nagaraja, learned Additional Government Advocate appearing for the respondent No.1; and Sri. Prakash T. Hebbar, learned counsel appearing for the respondents 2 and 3.

2. The grievance of the petitioner is with regard to consideration of representation dated 10th April, 2015 (Annexure-L) made by the petitioner to the respondent No.3.

It is also stated in the writ petition that the claim made by the



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- 3 -

WP NO.39600 OF 2015



petitioner is to redo the seniority list and to assign the appropriate cadre to the petitioner, however, the same has not been considered.

3. In that view of the matter, I am of the view that, respondents 2 and 3 shall consider the representation dated 10th April, 2015 (Annexure-L). However, in view of the fact that the said representation is of the year 2015, the petitioner is directed to make one more representation to respondents 2 and 3 within two weeks from today and if such representation is made by the petitioner, respondents 2 and 3 shall consider the same in accordance with law, within an outer limit of eight weeks from the date of receipt of representation to be made by the petitioner. Accordingly, writ petition is disposed of.

SD/-
JUDGE



ARK

- The date on which the application was made 23/5/23
- The date on which charges and additional Charges if any are called for
- The date on which charges and additional Charges if any are deposited/Paid
- The date on which the copy is ready 25/5/23
- The date of notifying that the copy is ready For delivery 25/5/23
- The date on which the applicant is required to appear on or before 29/5/23
- The date on which the copy is delivered to the Applicant
- Examined by 29/5/23 BMD

TRUE COPY

N.M. Babu
Section Officer
High Court of Karnataka
Bengaluru - 560 001

O/C

Date: 26.05.2023

To:

1) The Chairman

Karnataka Chitrakala Parishath,
Art Complex, Kumara Park Road,
Bengaluru- 560 001.

2) The General Secretary

Karnataka Chitrakala Parishath,
Art Complex, Kumara Park Road,
Bengaluru- 560 001.

Sir/s,

Sub: Regarding implementation of the order dated
22.05.2023 passed on W.P.No.39600/2015 (S-PRO)

You are aware that I joined the services of the Parishath on 15.12.1997 as Gallery Attender. Thereafter during the year 2008, I completed my SSLC. Immediately thereafter on 09.06.2008, I submitted a representation and produced the copy of the SSLC Certificate and requested for accommodating me in a suitable post.

2. Again, on 20.08.2009, another representation was made and an endorsement was issued on 25.08.2009 stating that they have no posts in the Parishath where she can be accommodated. Another endorsement was issued on 06.10.2009 on similar lines.



3. It is a matter of fact that the provisions of Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of Service of Employees) Regulations, 2009 came to be issued in terms of Notification dated 09.11.2009 and for the post of Second Division Assistant, the Rules provide for promotion for possession of PUC or equivalent or service of 07 years in one or more of the cadre in Group 'D'.

4. Seniority List was published of Second Division Assistants on 01.01.2011 and as per the Seniority List, one of her junior namely Smt.Sumithra.B who was appointed on 29.07.1999 as Gallery Assistant was shown to have been promoted from 01.01.2009. Further, one Smt.Munieramma who was appointed during the year 2000 and though is junior to me was given promotion as Second Division Assistant in the year 2013.

5. As stated above, the Cadre & Recruitment Rules namely Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of Service of Employees) Regulations, 2009 came to be issued in terms of Notification dated 09.11.2009, whereby the

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(60)

prescription was made that a Second Division Assistant should have PUC Qualification.

6. Even then, Smt.Munieramma, who is junior to me was promoted during the year 2013 and the promotions granted to Smt.Sumithra and Smt.Munieramma goes to show that I am being discriminated and the juniors are preferred over and above me.

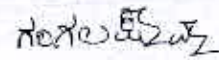
7. In these circumstances, since I had approached the Hon'ble High Court the Hon'ble High Court granted liberty to file a representation and directed to consider the same within 08 weeks from the date of submission of the representation. Copy of the order passed W.P.No.39600/2015 (S-PRO) dated 22.05.2023 is enclosed herewith for your ready reference.

8. In these circumstances, I am representing to you and also request you to consider my case in the light of above circumstances and grant me promotion retrospectively from the date my junior is promoted and extend all the benefits including payment of arrears salary etc., from such date. Again, it is necessary to point out that I will also be entitled for the increments and arrears of the same which have been improperly withheld from the year 2018.

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9. It is hoped that steps will be taken at the earliest to extend the above reliefs.

Yours faithfully,



[GANGALAKSHMAMMA]

Encl: Copy of the Order dated 22.05.2023 passed by the
Hon'ble High Court in W.P.No.39600/2015 (S-PRO)

ANNEXURE - P

Date: 27.07.2023

To:

1) The Chairman
Karnataka Chitrakala Parishath,
Art Complex, Kumara Park Road,
Bengaluru- 560 001.

2) The General Secretary
Karnataka Chitrakala Parishath,
Art Complex, Kumara Park Road,
Bengaluru- 560 001.



Sir/s,

Sub: Reminder for implementation of the order dated
22.05.2023 passed on W.P.No.39600/2015 (S-PRO)

You are aware that I joined the services of the Parishath on 15.12.1997 as Gallery Attender. Thereafter during the year 2008, I completed my SSLC. Immediately thereafter on 09.06.2008, I submitted a representation and produced the copy of the SSLC Certificate and requested for accommodating me in a suitable post.

2. Again, on 20.08.2009, another representation was made and an endorsement was issued on 25.08.2009 stating that they have no posts in the Parishath where she can be accommodated.

Another endorsement was issued on 06.10.2009 on similar lines.

o/c.

3. It is a matter of fact that the provisions of Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of Service of Employees) Regulations, 2009 came to be issued in terms of Notification dated 09.11.2009 and for the post of Second Division Assistant, the Rules provide for promotion for possession of PUC or equivalent or service of 07 years in one or more of the cadre in Group 'D'.

4. Seniority List was published of Second Division Assistants on 01.01.2011 and as per the Seniority List, one of her junior namely Smt.Sumithra.B who was appointed on 29.07.1999 as Gallery Assistant was shown to have been promoted from 01.01.2009. Further, one Smt.Munieramma who was appointed during the year 2000 and though is junior to me was given promotion as Second Division Assistant in the year 2013.

5. It is necessary to point out that I get the right for seeking promotion from the date my juniors are promoted as held by the Hon'ble Supreme Court and the other courts again and again.

6. Further, there cannot be any discrimination between me and those who got the benefit of the promotion since it is the view taken by the Hon'ble Supreme Court as under:

a) In ***Vishundas Hundumal and Others v. State of Mandya Pradesh and Others reported in (1981) 2 SCC 410*** the Hon'ble Supreme Court held as under:

"Conceding that this was discrimination unconsciously indulged into by inadvertence or oversight on the part of a government agency, by this order we only propose to rectify the same and reject the whole scheme. Such an approach would be destructive of a wholesome effort towards nationalization of bus transport which is generally undertaken in public interest. When discrimination is glaring the State cannot take recourse to inadvertence in its action resulting in discrimination. The approach is, what is the impact of State action on the fundamental rights of citizens. In this case denial of equal protection is complained of. And this denial of equal protection flows from State action and has a direct impact on the fundamental rights of the petitioners. We, therefore, propose to take a constructive approach by removing the discrimination by putting the present petitioners in the same class as those who have enjoyed favourable treatment by

inadvertence on the part of the Regional Transport Authority."

- b) Again, the Hon'ble Supreme Court in the case of ***Hari Ram and Another v. State of Haryana and Others*** [(2010) 3 SCC 621] has held as under:

"40. It is true that any action or order contrary to law does not confer any right upon any person for similar treatment. It is equally true that a landowner whose land has been acquired for public purpose by following the prescribed procedure cannot claim as a matter of right for release of his/her land from acquisition but where the State Government exercises its power under Section 48 of the Act for withdrawal from acquisition in respect of a particular land, the land owners who are similarly situated have a right of similar treatment by the State Government. Equality of citizens rights is one of the fundamental pillars on which the edifice of the rule of law rests. All actions of the State have to be fair and for legitimate reasons."

7. Though as per the first decision the Hon'ble Supreme Court had dealt with the nationalization of transport and in the second case about land acquisition the principle evolved is that if any benefit is

given to one class of persons those who are similarly placed cannot be discriminated.

8. Further what is necessarily to be added is that the Rules as on the relevant date are required to be considered since the C& R Rules came into force with effect from 09.11.2009 and Smt.Sumithra .B was granted promotion on 01.01.2009 and my case is also to be considered on par with Sumithra.B. In these circumstances it is necessary to consider the following observation of the Hon'ble High Court of Karnataka in the case of **Narasimhiah v. Commissioner, Corporation of the City of Bangalore**, reported in **ILR 1999 Kar 2946**.

"That the 2nd Respondent was senior to the petitioner in the cadre of Inspectors Grade II is not in dispute nor was it disputed that while placing the petitioner in-charge of the higher post of Inspector Grade I, the cases of other candidates including the petitioner were not considered. The petitioner appears to have been picked up for an incharge arrangement only because the vacancy against which the arrangement was made had become available in the office in which he was posted. Such being the case, the petitioner could not possibly acquire an advantage over other eligible

candidates particularly those senior to him only on account of any such temporary or officiating arrangement. Regular promotions to the cadre as noticed earlier was granted to both the petitioner and the 2nd Respondent with effect from the same date, in September, 1987. Judged by the norms governing determination of seniority it cannot be disputed that in the year 1987 the 2nd Respondent was and continued to be senior to the petitioner in the cadre of Inspectors Grade I. The difficulty arose on account of a direction from this Court in the Writ Petitions filed, by the petitioner and others for consideration of their cases from the date they were placed in charge of the higher post. That direction it is obvious proceeded on the assumption that those incharge of the higher post were senior most officials entitled to such a benefit. The paragraph extracted in the earlier part of this Writ Petition, from the order of this Court bears ample testimony to that aspect of the matter. The position would have been different if the Corporation or the petitioners had disclosed the true facts to the Court and pointed out that 2nd Respondent was senior to the petitioners and yet not placed in charge of a higher post. Suffice it to say that the direction of this Court proceeded on an assumption which was factually incorrect. The argument made by Mr. Manjunath, that the Corporation as also the petitioners in the earlier petition, failed to disclose the true facts whether deliberately or otherwise resulting in

the issue of a direction for consideration of the cases of the petitioners only cannot therefore be lightly brushed aside. The consequential order passed by the Corporation also did not for any good reason take note of the fact that the 2nd Respondent was senior and therefore entitled to be considered for promotion. There is nothing on record to show that the case of the said Respondent was considered by reference to a date prior to September, 1987 at any stage. If the promotions were to be related back to any particular date, the consideration of all such candidates as were eligible for promotion on that date, was imperative. Non-consideration of the rightful claim of a candidate who was eligible resulting in denial of seniority to him apart from other monetary benefits would therefore be wholly unfair and unjust. Such a non-consideration cannot be equated with supersession where the competent authority assesses the comparative merit and suitability of the eligible candidates and chooses one over the other. Any such comparison and consequent selection may not be open to re-examination by the very same authority who has upon evaluation of the material come to a certain conclusion. But cases where there is total non-consideration either because of misunderstanding of the order issued by the Court or otherwise would stand on a different footing. Similarly, promotions to the cadre of Assessors was also on the very same basis effected. The promotion of the petitioner in the

year 1991, was not upon consideration of the claim of the 2nd Respondent, not is it anybody's case that if considered in the year 1991, the 2nd Respondent was not fit or eligible for such promotion.

The question then is whether the Corporation could have entertained a complaint looked into the matter and rectified the mistake committed by it. According to the petitioner it could not have done so not because an error or mistake cannot be corrected even when it is brought to the notice of the authority who has committed the same but because the person aggrieved of such a mistake had not invoked the power of Corporation within a reasonable time. A distinction must however be made between delay which disables or disentitles a party from seeking relief from the Court under Article 226 and that which is sought to be pressed into service to prevent an authority who has committed the mistake from rectifying the same. Writ Jurisdiction of this Court under Article 226 is discretionary and equitable in nature. Exercise of that jurisdiction depends largely upon the diligence which the party invoking the power has shown in making his grievance. Courts have accordingly evolved norms and standards as matters of prudence for regulating the exercise of that power. Delay by itself may not be a bar but may in a given case be sufficient for a Writ Court to decline interference, if it is of the opinion

that any such interference would unsettle a settled position or cause hardship and injustice to a third party. This would not be true in cases where the authority who has passed the order is satisfied that the mistake committed by it has resulted in injustice, which should be undone. The authority can upon any such satisfaction rectify the mistake to do complete justice between the parties. If it does do so, a Writ Court would be slow in interfering with exercise of any such discretion by the Authority. That is particularly so when the Court finds that the order under challenge has done substantial justice and prevented undeserved hardship to a party. That is precisely the position in the instant case also. The order passed by the Corporation has rectified a mistake and restored parity though belatedly to do complete justice between the parties. There is nothing unfair or irrational about the order to call for interference. A mistake committed by an Authority need not be perpetuated especially when it results in injustice to the party against whom it has been committed. The impugned order has without disturbing the promotion of any other person related back the promotion of the 2nd Respondent to the dates on which the petitioner was promoted and on that basis corrected the seniority position. Since the promotion ordered is not accompanied by any other benefit by way of payment of arrears etc, it is unnecessary to examine whether any post in the cadre of Inspector Grade I

or Assessors were actually available on the date by reference to which the 2nd Respondent has been promoted. The substance of the order is that the disadvantage which the 2nd Respondent suffered on account of his delayed promotion resulting from non-consideration of his case has been removed by the impugned order without disturbing the petitioner's promotion or the monetary advantages that he has drawn from the same. The order at this stage is relevant only for purposes of seniority in the cadre of Assessor which would be one of the factors to be considered for purposes of further promotions.

9. As stated above, the Cadre & Recruitment Rules namely Karnataka Chitrakala Parishath and College of Fine Arts (Recruitment and Conditions of Service of Employees) Regulations, 2009 came to be issued in terms of Notification dated 09.11.2009, whereby the prescription was made that a Second Division Assistant should have PUC Qualification.

10. Even then, Smt.Munieramma, who is junior to me was promoted during the year 2013 and the promotions granted to Smt.Sumithra and Smt.Munieramma goes to show that I am being discriminated and the juniors are preferred over and above me.

11. In these circumstances, since I had approached the Hon'ble High Court the Hon'ble High Court granted liberty to file a representation and directed to consider the same within 08 weeks from the date of submission of the representation. Copy of the order passed W.P.No.39600/2015 (S-PRO) dated 22.05.2023 is enclosed herewith for your ready reference.

12. Again I had represented on 26.06.2023 in pursuance of the order of the Hon'ble High Court and till date it appears that my case is not considered.

13. In these circumstances, I respectfully submit that my case is required to be considered since the year 2009 I am deprived of promotion and other benefits.

14. In these circumstances, I am submitting the present reminder with a hope that steps will be taken at the earliest to extend the above reliefs.

Yours faithfully,



[GANGALAKSHMAMMA]

- Encl: 1) Copy of the Order dated 22.05.2023 passed by the Hon'ble High Court in W.P.No.39600/2015 (S-PRO)
- 2) Copy of the judgment in Vishundas Hundumal and Others v. State of Mandya Pradesh & Others reported in (1981) 2 SCC 410
- 3) Copy of the judgment in Hari Ram and Another v. State of Haryana and Others reported in [(2010) 3 SCC 621]
- 4) Copy of the judgment in Narasimhiah v. Commissioner, Corporation of the City of Bangalore, reported in ILR 1999 Kar 2946

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ANNEXURE - 2



ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು
ಕುಮಾರಕೃಪಾ ರಸ್ತೆ, ಬೆಂಗಳೂರು-01

ಸಂಖ್ಯೆ: ಚ.ಕ.ಪ: 27/2023-24

ದಿನಾಂಕ: 04.11.2023

ವಿಷಯ: ಗೌರವಾನ್ವಿತ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶದನ್ವಯ ತಾವು ಸಲ್ಲಿಸಿರುವ ಮನವಿ ಕುರಿತು.

- ಉಲ್ಲೇಖ: 1 ಗೌರವಾನ್ವಿತ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಆದೇಶ ಸಂಖ್ಯೆ:
WP/No:39600/2015(S- PRO) ದಿನಾಂಕ: 22.05.2023.
2 ಈ ಕಛೇರಿ ಪತ್ರ ಸಂಖ್ಯೆ:ಚಿಕಪ:135/2023-24 ದಿನಾಂಕ: 24.07.2023
3 ತಾವು ದಿನಾಂಕ: 08.08.2023ರಂದು ಸಲ್ಲಿಸಿರುವ ಪೂರಕ ದಾಖಲೆಗಳ ಸಹಿತ ಮನವಿ ಪತ್ರ.

ಮೇಲ್ಕಂಡ ವಿಷಯ ಹಾಗೂ ಉಲ್ಲೇಖಿತ ಪತ್ರಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಕಾನೂನು ತಜ್ಞರ ಸಲಹೆಯನ್ನು ಪಡೆದು, ದಿನಾಂಕ: 25.09.2023ರಂದು ನಡೆದ ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನ ಕಾರ್ಯಕಾರಿ ಸಮಿತಿ ಸಭೆಯಲ್ಲಿ, ತಾವು ದಿನಾಂಕ: 08.08.2023ರಂದು ಸಲ್ಲಿಸಿದ್ದ ಮನವಿ ಪತ್ರ ಮತ್ತು ಇತರೆ ಪೂರಕ ದಾಖಲೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ, ಚರ್ಚಿಸಲಾಗಿರುತ್ತದೆ. ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ: ಎಸ್.ಎ.ವೈ.ಐ:19:ಸಿ.ಎಸ್.ಆರ್:2008, ಬೆಂಗಳೂರು, ಅನ್ವಯ ದಿನಾಂಕ:09.11.2009ರಿಂದ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳು ಚಾಲ್ತಿಯಲ್ಲಿದ್ದು, ಸದರಿ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳ ಕ್ರಮ ಸಂಖ್ಯೆ:07ರನ್ವಯ ಮೇಲಿನ ಹುದ್ದೆಗೆ ಪದೋನ್ನತಿ ಪಡೆಯಲು ತಾವು ನಿಗದಿತ ಶೈಕ್ಷಣಿಕ ಅರ್ಹತೆ ಹೊಂದಿಲ್ಲದ ಕಾರಣ ತಮ್ಮ ಮನವಿಯನ್ನು ಪರಿಗಣಿಸಲು ಸಾಧ್ಯವಿಲ್ಲವೆಂದು ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನ ಕಾರ್ಯಕಾರಿ ಸಮಿತಿ ನಿರ್ಧರಿಸಿರುವುದನ್ನು ತಮ್ಮ ಗಮನಕ್ಕೆ ತರಲು ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತಿನ ಕಾರ್ಯಕಾರಿ ಸಮಿತಿಯಿಂದ ನಿರ್ದೇಶಿತನಾಗಿದ್ದೇನೆ.

ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ

ಇವರಿಗೆ,
ಶ್ರೀಮತಿ ಗಂಗಲಕ್ಷ್ಮಮ್ಮ
ಗ್ಯಾಲರಿ ಸಹಾಯಕರು
ಕರ್ನಾಟಕ ಚಿತ್ರಕಲಾ ಪರಿಷತ್ತು,
ಕುಮಾರಕೃಪಾ ರಸ್ತೆ,
ಬೆಂಗಳೂರು-01

ಪ್ರತಿ:

1. ವೈಯಕ್ತಿಕ ಕಡತ
2. ಕಛೇರಿ ಪ್ರತಿ

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

WP No. / 2024

Serial No.



M. S. PARTHASARATHI
M. P. SRIKANTH
P. N. SHOBHA

ADVOCATES

No. 15, 6th 'E' Main, 2nd Stage, 2nd Phase
Mahalakshmi Layout, Bangalore - 560 086
Ph. : -080 - 23194000, Fax : 080-23497173
Mob. : 98860 10908 Email: mpsrikanth@gmail.com

..... District

Between

Smt. Gangalakshamma

And

The State of Karnataka

and others.

Sl. No.	Description of Paper Presented	Court Fees affixed on the paper	
1.	On the Memo <u>writ</u> Petition		
2.	On the Memo of Appeal		
3.	On Vakalat		
4.	On Certificate Copies		
5.	On I.A. No. for		
6.	Process Fee		
7.	On copy Application		
8.			
9.			
10.			
Total			

Number of Copies Furnished

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Presented by

Advocate for Petitioner/s / Appellant/s

Received Paper with
Court-Fee labels as above

Caveator / Respondent/s

Advocate's Clerk

Date : 02.01. 2024

Bangalore

Receiving Clerk.

**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA ... PETITIONER

AND:

STATE OF KARNATAKA & OTHERS ... RESPONDENTS

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Bangalore
Date: 02.01.2024

Advocate for the Petitioner
(M.P. SRIKANTH)

**IN THE HIGH COURT OF KARNATAKA AT
BANGALORE**

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA ... PETITIONER

AND:

STATE OF KARNATAKA & OTHERS ... RESPONDENTS

**APPLICATION UNDER SECTION 151 OF THE CODE
OF CIVIL PROCEDURE FOR DISPENSATION**

1. In the present petition, the Petitioner has prayed for Quash the Endorsement No.Chi.Ka.Pa. 27/2023-24 dated 04.11.2023 as issued by the 3rd Respondent vide **Annexure-Q** and further other reliefs are also sought in the petition.

2. It is submitted that the Endorsement No.Chi.Ka.Pa. 27/2023-24 dated 04.11.2023 as issued by the 3rd Respondent vide **Annexure-Q** at this stage has been misplaced. In view of the reasons as mentioned above, by producing the copies of the documents as available the present writ petition is filed. However, steps have

been taken to produce the certified copies as and when available.

3. It is submitted that the Petitioner undertakes to produce the same within four weeks from today.

Hence, the present application is filed.

4. It is submitted that if the present application is allowed, no hardship or injury would be caused to the other side and if the same is not allowed, the Petitioner will be put to great hardship and injury, which cannot be compensated in any manner.

Wherefore, it is respectfully prayed that this Hon'ble Court may kindly be pleased to dispense with the production of the Endorsement No.Chi.Ka.Pa. 27/2023-24 dated 04.11.2023 as issued by the 3rd Respondent vide **Annexure-'Q'**, in the ends of justice.

Bangalore
Date: 02.01.2024

Advocate for the Petitioner
(M.P. SRIKANTH)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

WRIT PETITION No. /2023

BETWEEN:

SMT. GANGALAKSHMAMMA

... PETITIONER

AND:

THE STATE OF KARNATAKA

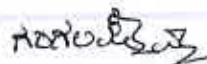
AND OTHERS

...RESPONDENTS

VERIFYING AFFIDAVIT

I, **SMT. GANGALAKSHMAMMA**, W/o. D. Rangaswamy, Aged about 58 years, Gallery Attender, Karnataka Chitrakala Parishath, Kumar Krupa Road, Bengaluru, R/at No-490, Chandralaya, 5th Cross, Near Patalamma Temple, Bharath Co-Operative Society Ltd Uttarahalli, Bengaluru South, Bengaluru-560061, do hereby solemnly affirm and state on oath as follows:

1. I submit that I am the Petitioner in the above Petition and I am well conversant with the facts of the case. Hence I am swearing to this affidavit.
2. I submit that the averments made in Paras 1 to 4 of the Writ Petition are true and correct to the best of my knowledge, information and belief.



VERIFICATION

I state that the averments made in the Writ Petition are true and correct to the best of my knowledge, information and belief.

IDENTIFIED BY ME

**ADVOCATE
BANGALORE**

DATED: 02-01-2024

NO. OF CORRECTIONS:-

Nonuella

**DEPONENT
"Sworn to before me"**